REVISED RESOLUTION PLAN

FOR

KKSPUN INDIA LIMITED

(CORPORATE DEBTOR)

CIN: U29199DL2006PLC144590

(PURSUANT TO INSOLVENCY AND BANKRUPTCY CODE, 2016)

SUBMITTED BY:

RESOLUTION APPLICANT: Mrs Jaishree Gupta

SUBMITTED TO:

MR. HARVINDER SINGH

Resolution Professional

For

M/s KKSPUN INDIA LIMITED

(Under CIRP)

IP REGN. NO.: IBBI/IPA-001/IP-P00463/2017-18/10806

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Private and Confidential

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PREFACE

This Resolution Plan is being submitted by Mrs. Jaishree Gupta having residence at 86, Anand Lok, August Kranti Marg, Gulmor Park, South Delhi -110049, Delhi (hereinafter also referred as "Resolution Applicant" or "RA"), pursuant to the Request for Resolution Plan for KKSpun India Limited (hereinafter referred as "Corporate Debtor" or "CD"), which is currently undergoing Corporate Insolvency Resolution Process ("CIRP") under the provisions of the Insolvency and Bankruptcy Code, 2016 ("IBC").

The Corporate Debtor was incorporated in the year 2006, and as per its annual filing, it is engaged in the business of manufacturing precast concrete pipes and fittings at in 3 plants across India. It undertakes government and private tenders linked to irrigation, sewerage network, and river interception.

The Corporate Debtor, M/s KKSpun India Limited, is under the Corporate Insolvency Resolution Process (CIRP) as per the order dated 11.07.2025 by the Hon'ble National Company Law Tribunal, Court IV, New Delhi Bench, in accordance with section 7 of the Insolvency and Bankruptcy Code, 2016.

Hon'ble National Company Law Tribunal has appointed **Mr. Harvinder Singh** having IBBI Registration No. IBBI/IPA-001/IP-P00463/2017-18/10806 as an Interim Resolution Professional (IRP) to oversee the Corporate Insolvency Resolution Process of KKSpun India Limited (Corporate Debtor). In the First COC Meeting dated 23.10.2025, the IRP was confirmed as RP by the members of the COC by 98.03% voting.

The Resolution Applicant possesses extensive experience in the manufacturing and supply of precast concrete pipes and fittings and is supported by a team of seasoned professionals with proven expertise in business activities analogous to those of the Corporate Debtor, namely precast concrete pipes and fittings. The Resolution Applicant also has adequate net worth and strong financial standing, clearly demonstrating its financial capability to successfully restructure, revive, and resolve the stressed Corporate Debtor. RA with Family has experience of 30 years alongwith Net worth of Rs 80 Crores. The Resolution Applicant is fully equipped to settle the dues of the

creditors in accordance with the Resolution Plan and ensure sustainable revival and continued operations of the Corporate Debtor as a going concern.

For the purpose of implementation of the Resolution Plan, the Corporate Debtor shall be appropriately funded either by way of Equity or Debt or Debt Cum Equity /hybrid instruments by the Resolution Applicant or the entity or persons identified by the Resolution Applicant at its discretion, The Resolution Applicant shall ensure that such new entities or persons shall also be eligible under Section 29A of the Code, if such new entities become investor during the implementation of the Resolution Plan.

The Resolution Plan has been prepared based on the information provided in the Information Memorandum (IM), additional information from the Resolution Professional and information in Public Domain.

This Resolution Plan has been prepared by the Resolution Applicant ("RA") to the best of their knowledge solely relying upon the information provided to the Resolution Applicant by the Resolution Professional through Information Memorandum or otherwise made available by the Resolution Professional through email and/or other communication. The Resolution Applicant explicitly declare that all liabilities prior to CIRP date whether disclosed in the I.M. or not shall not be taken over by him/her (Clean Slate) and all assets whether declared in the I.M. or not shall wholly belong to C.D. after approval of Resolution Plan by A.A. In other words Resolution Applicant explicitly declare for the reference of all the stakeholders and authorities, its intention and resolution not to take over any undisclosed liability of past period of whatsoever nature, of the Corporate Debtor till the date of Hon'ble NCLT order approving the Resolution Plan of the Corporate Debtor and in the manner as listed hereunder in this Resolution Plan, subsequent to approval of this Resolution Plan by NCLT in totality, it is of no relevance whether such liabilities explicitly mentioned in this Resolution Plan or not and also Resolution Applicant hereby assume all assets of the Company and taking over all of them whether all are mentioned explicitly or not in this Resolution Plan. There is possibility that some assets and liabilities may not be listed and might be omitted in this Resolution Plan but this preamble clearly express and declare understanding of the Resolution Applicant without any ambiguity, its intention and

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resolution in submitting this Resolution Plan for the Corporate Debtor.

The Resolution Applicant thanks the CoC and the Resolution Professional for the opportunity to present this Resolution Plan to resolve the insolvency of the Corporate Debtor. The Resolution Applicant, thus, while preparing this Resolution Plan has ensured that this Resolution Plan is in compliance with the provisions of the Code. CIRP Regulations, and the RFRP, and declares that the Resolution Plan is unconditional, irrevocable and binding on the Resolution Applicant, and have considered the interest of all stakeholders and accordingly, a sizeable amount has been proposed towards the settlement of dues of various creditors and continuation of the business of the Corporate Debtor as a going concern

The Resolution Applicant reserves its right to discuss and negotiate the terms of the Resolution Plan with the CoC and thereafter to reuse the Resolution Plan based on the discussion and negotiations with the CoC.

UNDERTAKING & DECLARATION

i) The Resolution Applicants confirms that the Resolution Applicant as also all the connected person including the Key Management team are eligible under section 29A of the Code (as amended from time to time) as on the date of submission of Resolution Plan and shall also to continue to be eligible at the time of consideration and approval of its Resolution Plan by COC and its approval by the Adjudicating Authority and shall make necessary disclosure in the Resolution Plan and shall furnish documents relating to eligibility of the Resolution Applicant.

ii) The Resolution Plan meets the requirements of the Code and various Regulations made thereunder.

iii) To the best of the Resolution Applicant, the Resolution Plan does not contravene any of the provisions of law as applicable for the time being in force.

iv) The Resolution Applicant hereby undertakes that neither the Resolution Applicant nor any of its related parties have failed to implement or contribute to the failure of implementation of any other resolution plan that has been approved by the Adjudicating Authority.

v) The RA was invited pursuant to an invitation issued under Section 25(2)(h) read with Regulation 36A of the CIRP Regulations.

vi) The RA fulfilled the eligibility criteria approved by the Committee of Creditors (CoC).

vii) The RA submitted the Resolution Plan in accordance with the Request for Resolution Plan (RFRP).

viii) **Statement as per Regulation 38(1B) of the CIRP Regulations:**

(1) As per Regulation 38(1B) of the CIRP Regulations, "A resolution plan shall include a statement giving details if the resolution applicant or any of its related parties has failed to implement or contributed to the failure

of implementation of any other resolution plan approved by the Adjudicating Authority at any tune in the past"

(2) In this regard, the RA undertakes for itself that neither it nor any of its related parties have failed to implement or contribute to the failure of implementation of any other resolution plan approved by the NCLT/Adjudicating Authority at any time in the past.

ix) The Resolution Applicant hereby states and confirms that neither the Resolution Applicant nor any of its connected persons has withdrawn from any resolution plan submitted in respect of any other corporate debtor after approval of such resolution plan by the relevant committee of creditors.

x) The Resolution Applicant hereby acknowledges and confirms that:

(1) The parameters set out by the Committee of Creditors in the Evaluation Matrix, and the scores awarded to each Resolution Plan submitted by the Resolution Applicants after evaluation of such plans in accordance with the said parameters, fall solely within the commercial wisdom and decision-making domain of the Committee of Creditors; and

(2) The Resolution Applicant has no vested right to challenge, dispute, or contest the score awarded by the Committee of Creditors to any Resolution Applicant after evaluation of the Resolution Plans in accordance with the parameters set out in the Evaluation Matrix.

xi) The Resolution Applicant hereby agrees and undertakes that, upon approval of the Resolution Plan by the Adjudicating Authority, the Successful Resolution Applicant shall bear and pay in advance all costs, expenses, and charges of litigation and proceedings incurred or required to be incurred by the Resolution Professional in connection with the Corporate Insolvency Resolution Process of the Corporate Debtor, including costs relating to defending, prosecuting, pursuing, or settling any applications, appeals, or proceedings arising out of or relating to the CIRP of the Corporate Debtor.

xii) **Declaration under Section 30(2)(f) of the Insolvency and Bankruptcy Code, 2016:** It is hereby declared that the Resolution Plan conforms to all such other requirements as specified by the Insolvency and Bankruptcy Board of India under the Insolvency and Bankruptcy Code, 2016, including applicable provisions of the CIRP Regulations, and all laws for the time being in force.

xiii) **Declaration-cum-Undertaking as required in compliance with clause no. 3.1.1 (d) of RFRP:-**

(1) I, the Resolution Applicant, hereby declare and undertake that I have independently exercised my own judgment, carried out necessary due diligence, and verified the facts, records, information, and documents relevant for submission of the Resolution Plan.

(2) I further confirm that any decision taken by me/us for submission of the Resolution Plan has been made after independent assessment and is not solely based upon the Information Memorandum, Request for Resolution Plan (RFRP), data room materials, or any other information/records made accessible or available by the Resolution Professional, Committee of Creditors, Corporate Debtor, or their respective representatives/advisors and there shall be no-recourse against the RP/CoC/Corporate Debtor or any of their respective representatives or advisors.

xiv) **Representation/ Confirmation as required in compliance with clause no. 4.2.12 of RFRP:-**

(1) I, the Resolution Applicant, do hereby represent, confirm, and undertake that the contents of the affidavit earlier submitted by me/us, stating inter alia that I/we am/are not disqualified or ineligible under the provisions of the Insolvency and Bankruptcy Code, 2016, and the CIRP Regulations, for submitting a Resolution Plan in respect of the Corporate Debtor, continue to remain true, correct, valid, and subsisting as on the date of submission of the Resolution Plan.

(2) I further warrant and undertake that the aforesaid declarations and confirmations shall remain true, correct, and effective at all times during the CIRP process, till approval of the Resolution Plan by the Adjudicating Authority and implementation thereof, subject to applicable law.

(3) I undertake to immediately intimate the Resolution Professional and the Committee of Creditors in the event of occurrence of any fact, circumstance, disability, or disqualification which may affect such eligibility.

xv) Indemnity as required in compliance with clause no. 4.2.13 of RFRP:-

(1) I, the Resolution Applicant, hereby indemnify and undertake & covenant to, defend, and hold harmless the Committee of Creditors, the Resolution Professional, the Corporate Debtor, and their respective representatives, advisors, employees, professionals, and agents from and against any and all losses, claims, damages, liabilities, costs, charges, actions, proceedings, expenses, or demands arising out of or in connection with any acts, decisions, steps, or actions taken by them in good faith during the Corporate Insolvency Resolution Process, including consideration, evaluation, negotiation, processing, or implementation of the Resolution Plan, in accordance with applicable law.

(2) It is clarified that such indemnity shall apply only to bona fide acts done in good faith and in discharge of duties under the Insolvency and Bankruptcy Code, 2016, and shall survive approval or rejection of the Resolution Plan, subject to applicable law.

Notwithstanding anything to the contrary contained in this resolution plan or any other documents, the Resolution Applicant [together with the co-applicants] agrees and confirms that there are no conditions and/or qualifications for effectiveness of the Resolution Plan by the resolution applicant [and co-applicants], whether before approval by NCLT or thereafter until the [Effective Date].

SECTION-1: INTRODUCTION AND DEFINITION

1.1 ABBREVIATION

IBC / Code	Insolvency and Bankruptcy Code, 2016
NCLT	National Company Law Tribunal
NCLAT	National Company Law Appellate Tribunal
AA	Adjudicating Authority
IBBI	Insolvency and Bankruptcy Board of India
CIRP	Corporate Insolvency Resolution Process
IRP	Interim Resolution Process
COC	Committee of Creditors
RP	Resolution Professional
SFC	Secured Financial Creditors
UFC	Unsecured Financial Creditors
MV	Market Value
LV	Liquidation Value
IM	Information Memorandum
KSIL	KKSpun India Limited
CD	Corporate Debtor
EMD	Earnest Money Deposit
AY	Assessment Year
FEMA	Foreign Exchange Management Act, 1999
ROC	Registrar of Companies
MCA	Ministry of Corporate Affairs
BOD	Board of Directors
RA	Resolution Applicant
Plan	Resolution Plan

1.2 DEFINITIONS

Unless the context otherwise indicates or requires, the following terms in the Resolution Plan shall have the respective meanings given below. Unless otherwise specified, references to all statutes, ordinances, rules and regulations are to such statutes, ordinances, rules and regulations as amended and applicable on the date of the Resolution Plan.

i. **"Adjudicating Authority" or "NCLT"**, shall mean the New Delhi Bench of the National Company Law Tribunal.

ii. **"Admitted Claim"** for each of the Financial Creditors, Operational Creditors, Other Creditors, Workmen, Employees etc., shall be the amount of their respective liabilities /claims as on Insolvency Commencement Date admitted by the Resolution Professional.

iii. **"Applicable Laws"** shall mean all applicable laws, regulations, rules, guidelines, circulars, re-enactments, revisions, applications and adaptations thereto made from time to time and in force and effect, judgments, decrees, injunctions, writs and orders of any court, arbitrator or governmental agency or authority, rules, regulations, orders and interpretations of any governmental authority, court or statutory or other body applicable for such transactions, including but not limited to the IB Code, CIRP Regulations, the Companies Act, 1956/2013 (as applicable), the Competition Act, 2002, the Foreign Exchange Management Act, 1999, the Securities and Exchange Board of India (Issue of Capital and Disclosure Requirement) Regulations, 2009 and Securities and Exchange Board of India (Substantial Acquisition of Shares and Takeovers) Regulations, 2011, each as amended from time to time.

iv. **"Approved Resolution Plan"** shall mean the Resolution Plan as approved by the COC and Hon'ble Adjudicating Authority.

v. **"Approval Date"** or **"Effective Date"** means the date on which the Resolution Plan is approved by the Hon'ble Adjudicating Authority under

Section 31(1) of the Insolvency and Bankruptcy Code, 2016, and shall be construed as the date on which the order approving the Resolution Plan is pronounced or uploaded on the official website of the Adjudicating Authority.

vi. **"Board of Directors"** means the board of directors of Corporate Debtor.

vii. **"CIRP Regulations"** shall mean Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, as amended from time to time.

viii. "**CIRP Period**" shall mean the period of one hundred eighty days from the date of admission of the Corporate Insolvency Resolution Process application by the Adjudicating Authority or as extended subject to approval by the COC and Adjudicating Authority.

ix. **"CIRP Costs"** means the costs as defined under section 5(13) of the Code read with regulation 31 of the CIRP Regulations.

x. **"Claim"** means: right to payment, whether or not such right is reduced to judgment, fixed, disputed, undisputed, legal, equitable, secured or unsecured. right to remedy for breach of contract under any law for the time being in force, if such breach gives rise to a right to payment, whether or not such right is reduced to judgment, fixed, matured, un matured, disputed, undisputed, secured or unsecured.

xi. **"Company/ Corporate Debtor"** shall mean **M/s KKSpun India Limited,** a Company incorporated in India under the Companies Act, 2006, having its Registered Office at DSIIDC Shed No. 103, Scheme - I, Okhla Industrial Area, Phase-II, South Delhi, New Delhi, Delhi, India, 110020.

xii. **"Connected Person"** shall have the meaning ascribed to the term under the IB Code.

xiii. **"Consideration"** shall mean any consideration that may be payable by

the Successful Resolution Applicant in relation to the proposed transaction in accordance with the Definitive Agreements.

xiv. **"Control"** means the power to direct the management or policies of a Person, directly or indirectly, whether through the ownership of shares or other securities, by contract or otherwise; provided that, in any event (and without limiting the foregoing), either (i) direct or indirect ownership of more than 50% of the voting share capital of such Person, or (ii) the power to appoint a majority of the board of directors or similar governing body of such Person, shall, in each case, be deemed to constitute Control of that Person. Controlling and Controlled shall have corresponding meanings.

xv. **"Committee of Creditors / CoC"** shall mean a committee of creditors of the Company constituted by the Interim Resolution Professional /Resolution Professional in accordance with the provisions of the IBC. The list of creditors may be updated at any point of time, which may or may not change the composition of the COC.

xvi. **"IBC/ IB Code/ Code"** shall mean the Insolvency and Bankruptcy Code, 2016 (to the extent notified and in force) including any Rules and Regulations framed thereunder and any modifications, clarifications, re-enactments or amendments thereto from time to time.

xvii. **"Confidentiality Undertaking"** means the confidentiality undertaking provided by the relevant Applicant in the specified format in favor of the Resolution Professional, to protect the confidentiality of the information in respect of the Corporate Debtor shared with the Applicant during the course of CIRP Period of the Company.

xviii. **"Consenting Financial Creditor"** shall mean Financial Creditor who exercises its vote in favour of approving the Resolution Plan in the CoC.

xix. **"Creditor(s)"** shall have the meaning assigned to it under section 3(10) of the Code.

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xx. **"Debt"** shall have the meaning ascribed to it under section 3(11) of the Code.

xxi. **"Dissenting Financial Creditor"** means each Financial Creditor who votes against the approval of the Resolution Plan in the COC.

xxii. **"Employees"** means all the employees of the Corporate Debtor who are/were on the payroll of the Corporate Debtor but shall exclude a Workman, if any.

xxiii. **"Encumbrances"** means any mortgage, pledge, options, warrants, equitable interest, assignment by way of security, hypothecation, right of other Person, claim, security interest, encumbrance, title defect, title retention agreement, voting trust agreement, interest, lien, charge, restriction or limitation of any nature whatsoever, encroachment, right of way, easement rights, including restrictions on use, voting rights, transfer, receipt of income or exercise of any other right related to ownership, or any other security interest of any kind whatsoever, or any arrangement, whether conditional or otherwise, to create any of the above;

xxiv. **"Existing Share Capital"** means the total issued, subscribed and paid-up share capital (including equity & preference shares, if any) of the Corporate Debtor as of the Insolvency Commencement Date.

xxv. **"Financial Creditor"** means any person to whom a financial debt is owed and includes a person to whom such debt has been legally assigned or transferred.

xxvi. **"Financial Debt"** shall have the meaning assigned to it under section 5(8) of the Code.

xxvii. **"Financial Information"** shall have the meaning assigned to it under section 3(13) of Code.

xxviii. **"Government Authority"** shall mean the President of India, the Government of India, the Governor and the Government of any State in

India, any Central or State Ministry or Department of the same, any municipal or local government authority, any authority or private body exercising powers conferred by Applicable Law, any regulatory or monitoring body or ministry of any government, and any court, tribunal or other judicial or quasi -judicial body, and shall include, without limitation, any stock exchange, depository and any regulatory body.

xxix. **"Guarantee(s)"** means and includes personal and corporate guarantees furnished in favour of any Financial Creditor, whether invoked or un-invoked, to secure the repayment of all loans of the Corporate Debtor.

xxx. **"Information Memorandum"** shall have the meaning assigned to the term under the provisions of the IB Code.

xxxi. **"Insolvency Commencement Date"** means the date of admission of an application for initiating the corporate insolvency resolution process by the Adjudicating Authority under section 7, 9, or section 10, as the case may be.

xxxii. **"Liquidation cost"** means any cost incurred by the liquidator during the period of liquidation subject to such regulations as may be specified by the Board.

xxxiii. **"MCA"** means the Ministry of Corporate Affairs, Government of India.

xxxiv. **"New Promoter/ New Board of Directors"** means and include:

a. New promoters mean the Resolution Applicant.

b. New Board of Directors means the newly constituted Board which will consist directors to be nominated by the Resolution Applicant.

xxxv. **"Operational Creditors"** means the operational creditors as defined in the Code who have lodged a Claim against the Corporate Debtor with Resolution Professional in accordance with Code.

xxxvi. **"Operational Debt"** means a claim in respect of the provision of goods or services including employment or a debt in respect of the payment of dues arising under any law for the time being in force and payable to any Government Authorities, including and but not limited to the Central Government, any State Government or any local authority.

xxxvii. **"Other Creditor(s)"** means a related or unrelated party of the Corporate Debtor to whom a debt is owed and who has lodged a Claim against the Corporate Debtor with Resolution Professional, the details whereof are provided in the Information Memorandum of the Corporate Debtor.

xxxviii. **"Paid-up Share Capital"** means such aggregate amount of money credited as paid-up as is equivalent to the amount received as paid-up in respect of shares issued and also includes any amount credited as paid-up in respect of shares of the company but does not include any other amount received in respect of such shares, by whatever name called.

xxxix. **"Performance Security"** shall mean security of such nature, value duration and source, as may be specified in the request for resolution plan with the approval of the committee, having regard to the nature of resolution plan and business of the corporate debtor.

xl. **"PMLA"** shall mean the Prevention of Money Laundering Act, 2002.

xli. **"Proceedings"** means any claim, demand, litigation, petition, action, suit, investigation, inquiry, process, proceeding, mediation, arbitration, conciliation, enforcement proceeding, hearing, complaint, assessment, fine, penalty, judgment, order, injunction, decree or award (administrative or judicial) by or before any Governmental Authority.

xlii. **"Resolution Applicant"** shall mean the Mrs. Jaishree Gupta having residence at 86, Anand Lok, August Kranti Marg, Gulmor Park, South Delhi -110049, Delhi.

xliii. **"Resolution Plan"** shall refer to this plan submitted by the Resolution

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Applicant in accordance with the provisions of the IB Code, CIRP Regulations, RFRP and applicable law for the time being in force.

xliv. **"Resolution Professional / RP"** shall mean **Mr. Harvinder Singh**, who is duly appointed by the Hon'ble NCLT, Delhi its order for conducting the CIRP of the Company.

xlv. **"Secured Creditor"** means a creditor in favour of whom a security interest is created.

xlvi. **"Secured Financial Creditor"** means a Financial Creditor in favour of whom a Security Interest is created

xlvii. "**Assenting Unrelated Financial Creditors**" shall mean those Financial Creditors of the Corporate Debtor, other than related party Financial Creditors as defined under Section 5(24) of the Insolvency and Bankruptcy Code, 2016, who have voted in favour of this Resolution Plan pursuant to Section 30(4) of the Code.

xlviii. "**Security Interest**" means right, title or interest or a claim to property, created in favour of, or provided for a secured creditor by a transaction which secures payment or performance of an obligation and includes mortgage, charge, hypothecation, assignment and encumbrance or any other agreement or arrangement securing payment or performance of any obligation of any person:

a) any mortgage, charge, hypothecation, assignment or any right, title or interest of any kind, on tangible asset, retained by the secured creditor as an owner of the property, given on hire or financial lease or conditional sale or under any other contract which secures the obligation to pay any unpaid portion of the purchase price of the asset or an obligation incurred or credit provided to enable the borrower to acquire the tangible asset; or

b) such right, title or interest in any intangible asset or assignment or license of such intangible asset which secures the obligation to pay any unpaid

portion of the purchase price of the intangible asset or the obligation incurred or any credit provided to enable the borrower to acquire the intangible asset or license of intangible asset.

Provided that security interest shall not include a Performance Guarantee.

xlix. **"Statutory Dues"** means the amount of the claims made by the Government Authorities in respect of any amounts payable by the Corporate Debtor and arising out of Applicable Law(s).

l. **"Taxes" or "Tax"** shall mean any and all direct or indirect, claims for tax, levy, impost, duty, cess, statutory dues or other charge of a similar nature (including any penalty or interest payable in connection with any failure to pay or any delay in paying any of the same) including on gross receipts, sales, turn-over, value addition, use, consumption, property, service, franchise, capital, occupation, license, excise documents (such as stamp duties) and customs and other taxes, duties, assessments, or fees, however imposed, withheld, levied, or assessed by any Government Authority;

li. **"Transfer Date"** shall mean the date on which Proposed Transaction is Completed and Corporate Debtor is handed over to Resolution Applicant, in accordance with the terms of the RFRP.

lii. **"Workman"** shall have the same meaning as assigned to it in clause (s) of section 2 of the Industrial Disputes Act, 1947.

liii. **"Unsecured Financial Creditor"** means a financial creditor in favour of whom no Security Interest is created.

liv. "**Upfront Cash**" shall mean the amount payable (in INR) by the Successful Resolution Applicant within stipulated days of Adjudicating Authority approval, as per the Resolution Plan.

lv. **"Proposed Transaction"** shall mean the acquisition and the management control of the KKSpun India Limited as envisaged in the IB Code.

1.3 INTERPRETATION

In this resolution plan, unless the context otherwise requires, following clauses on interpretation shall be adopted:

1.3.1. The headings of the paragraphs in this Resolution Plan are for the purpose of convenience and reference only and shall neither be used in the interpretation nor for modification or amplification of the terms of this Resolution Plan or any paragraph hereof, unless a contrary intention clearly appear.

1.3.2. Word importing-

- Any one gender includes the other gender;
- The singular includes the plural. and vice versa; and
- Persons. include natural persons, created entities. (Incorporated and un-incorporated and the State) and vice versa;

1.3.3. Any reference to any statute, regulation or other legislation in this Resolution Plan shall be a reference to that statute, regulation or other legislation. as at the Publication Date, and as amended or substituted from time to time;

1.3.4. Any reference in this Resolution Plan to any other agreement or document shall be construed as a reference to such other agreement or document as the same may have been, or may from time to time be, amended, varied or supplemented;

1.3.5. If figures are referred to in numerals and in words and if there is any conflict between the two, the words shall prevail;

1.3.6. If any provision in a definition in this Resolution Plan is a substantive provision conferring a right or imposing an obligation on any person or entity then, notwithstanding that it is only in a definition, effect shall be

given to that provision as if it were a substantive provision in the body of this Resolution Plan;

1.3.7. Where any term is defined in this Resolution Plan within a particular paragraph, that term shall bear the same meaning as prescribed to it in that paragraph wherever it is used in this Resolution Plan;

1.3.8. Any reference to days (other than a reference to Business Days), months or years shall be a reference to financial years, months or days, as the case may be; and words or terms that are capitalized and not otherwise defined in the narrative of this Resolution Plan (excluding capitalized words or terms used for the purpose of tables) shall bear the meaning assigned to them in the IBC 2016.

In the event of any inconsistency between the Resolution Plan and any other documents (except RFRP), the Resolution Plan shall prevail.

1.4 DISCLAIMER

This Resolution Plan is confidential to the stakeholders of the Company and prepared solely for the purpose(s) set out in IBC, 2016. No person may refer to or use the names of the Resolution Applicant or Resolution Professional or the Resolution Plan for any other purpose, disclose or refer them in any prospectus or other document, or make them available or communicate them to any other party. No other party is entitled to rely on our Resolution Plan for any purpose whatsoever.

The Resolution Applicant has made the Resolution Plan based on the information given by the Resolution Professional and from public domain.

This document has been made in electronic form and there may be some hard copies made also. Multiple copies and versions of this document may, therefore, exist in different media. Only the final hard copy duly signed should be regarded as definitive.

Financial Data: In this resolution plan any discrepancies in any table between the total & sum of the amounts listed are due to rounding off. All the figures & Decimals have been rounded off to zero decimal and all the percentage figures have also been rounded off to second decimal place and accordingly there may be apparent consequential changes in the resolution plan.

SECTION-2: BRIEF OF THE CORPORATE DEBTOR AND REASON FOR THE PRESENT POSITION OF THE CORPORATE DEBTOR

2.1 ABOUT CORPORATE DEBTOR

The Corporate Debtor, M/s KK Spun India Limited, is under the Corporate Insolvency Resolution Process (CIRP) as per the order dated 11.07.2025 by the Hon'ble National Company Law Tribunal Court IV, New Delhi Bench, in accordance with section 7 of the Insolvency and Bankruptcy Code, 2016.

Hon'ble National Company Law Tribunal has appointed **Mr. Harvinder Singh** having IBBI Registration No. IBBI/IPA-001/IP-P00463/2017-18/10806 as an Interim Resolution Professional (IRP) to oversee the Corporate Insolvency Resolution Process of KKSpun India Limited (Corporate Debtor). In the First COC Meeting, the IRP was confirmed as RP by the members of the COC.

A brief overview of the Corporate Debtor is given below:

COMPANY MASTER DATA	
CIN	U29199DL2006PLC144590
Company / LLP Name	KKSpun India Limited
ROC Name	ROC Delhi
Registration Number	144590
Company Category	Company limited by shares
Company Sub Category	Non-government company
Class of Company	Public
Authorised Capital (Rs)	50,00,00,000
Paid up Capital (Rs)	12,89,81,230
Date of Incorporation	09.01.2006
Registered Address	DSIIDC Shed No.103, Scheme-I, Okhla Industrial Area, Phase-II, South Delhi, New Delhi – 110020
Email Id	kg@kkspunpipes.com
Whether listed or not	No
Date of last AGM	30.09.2024
Date of Balance Sheet	31.03.2024
Company Status	Under CIRP

2.2 COMPANY AND MANAGEMENT PROFILE:

KKSpun India Limited, having CIN No. U29199DL2006PLC144590 is a public company incorporated on 09.01.2006. It is classified as a Non-Government Company and is registered at the Registrar of Companies, New Delhi. According to its annual filing, the company is engaged in the business of manufacturing precast concrete pipes and fittings at three plants across India. It undertakes government and private tenders linked to irrigation, sewerage network, and river interception. The Company operates 3 plants for manufacturing of RCC pipes at Bhiwadi (Rajasthan), Kanpur (Uttar Pradesh), and Maihar, Satna (Madhya Pradesh).

Management of the company

The Management of the Company comprises of Board of Directors, consisting of following directors (powers currently suspended pursuant to Section 17(1)(b) of the Code)

DIN/PAN	NAME	BEGIN DATE
00822757	Himanshu Gupta	09-01-2006
02953533	Kavish Gupta	01-01-2010
07145312	Rakhi Singh	28-10-2020

**As informed by Directors (Power suspended), Ms. Rakhi Singh was appointed as an Independent Director on the Board of KKSpun India Limited on 28th October 2020, for a term of five (5) consecutive years, in accordance with the provisions of Section 149 of the Companies Act, 2013, and the relevant rules made thereunder. Accordingly, her tenure is has expired on 28th October 2025.*

Note: Based on Information Memorandum.

2.3 A BRIEF ON BUSINESS & BACKGROUND AND REASONS FOR FINANCIAL CRISIS:

KKSpun India Limited (KIL) was formerly known as K.K. Spun Pipe Private Limited. It provides precast solutions for stormwater drainage, better sewage, box culvert solutions for instant bridging for pedestrians, and fauna, robust solutions for agricultural water supply and irrigation needs, barrier solutions manufactured to local road authority specifications, and solutions for catering to the telecom industry as well.

The company is one of the India's largest providers of precast concrete solutions for the Infrastructure Industry. The CD was founded by Mr. Pramod Gupta in 1977, with a single manufacturing unit in Ballabgarh. Since then, KKSP has expanded with a matchless pace as it is equipped with state-of-art machinery, laboratories and moulds, to develop top grade products. The Company operates 3 plants for manufacturing of RCC pipes at Bhiwadi (Rajasthan), Kanpur (Uttar Pradesh), and Maihar, Satna (Madhya Pradesh). The comprehensive precast concrete business extended to include products such as RCC pipes, jacking pipes, shaft and tunnel segments, irrigation pipes etc.

The major products of the company are majorly relating to Manufacture of Precast Solutions and EPC contracts. Laying of Pre-cast Concrete Pipes and drains. The company offers turnkey project services involving civil and mechanical works with single point responsibility, including engineering, design, procurement, commissioning, operation & maintenance works covering wastewater collection. It also provide consultancy services on how to manufacture and utilize specially designed precast concrete products in different civil projects.

The CD has availed various loans from the Banks and Financial Institution starting from year 2010. While initially, it was observed that the charges were satisfied thereby implying repayments, later the Company failed to honor the commitments.

The company has availed various individual loans from major banks, as named

below, under different sanctions.

In year 2016 it availed working capital loan of approx. 322 Crore under consortium facility from State Bank of India, ICICI Bank, Dena Bank (now merged with Bank of Baroda), HDFC Bank, IndusInd Bank, Yes Bank and Axis Bank. The consortium lending were further updated in year 2017 to Rs. 572 crore with Bank of India and Central Bank also as part of the consortium. Further, in the year 2020, The WC limit was revised to Rs. 531 crore wherein UCO Bank and IDFC Bank were included in the consortium and ICICI Bank was dropped from the consortium. The company gradually failed to honor the commitments and was declared as NPA by various financial institution as follows:-

Sr. No.	Name of the Bank	NPA Date
1	State Bank of India	10.08.2022
2	Bank of Baroda	08.06.2022
3	Bank of India	26.08.2022
4	Central Bank of India	29.09.2022
5	UCO Bank	24.09.2022
6	IndusInd Bank Limited	29.05.2022
7	Yes Bank Limited	05.08.2022
8	Axis Bank Limited	29.05.2022
9	IDFC First Bank Limited	23.03.2022
10	HDFC Bank Limited	It is NPA but date not available

Cause of Default:

As per the data available in the public domain and information provided by the suspended management, KKSpun India Limited, The Company faced severe financial distress due to multiple factors beyond its control, primarily arising from regulatory and execution-related challenges in large government infrastructure projects. Delays caused by faulty Detailed Project Reports (DPRs), land acquisition issues, regulatory approvals, and failure of Municipal Corporations to provide encumbrance-free land significantly impacted project timelines and costs. Wrongful termination of major sewerage contracts under the AMRUT scheme

across Satna, Rewa, Katni, Singrauli, Ambala, and Karnal, followed by encashment of substantial bank guarantees aggregating to over ₹85 crores, severely strained the Company's liquidity and working capital. Despite promoter infusion of approximately ₹13 crores from personal resources, prolonged legal disputes, delayed customer realizations, reduction in operating margins, and application of cash flows towards servicing financial liabilities led to acute cash flow mismatches. The situation was further aggravated by the untimely demise of the Company's founder and Chairman in January 2020 and the unprecedented impact of the COVID-19 pandemic, during which the Company continued to bear employee and site-related costs without reimbursement, ultimately resulting in financial stress and default.

2.4 PRESENT STATUS:

KKSpun India Limited continues to remain operational and is actively executing the projects already in hand as at the end of the financial year ended 31 March 2024. As on date, the Company is engaged in execution of six ongoing projects across different locations, namely Moradabad, Raebareli, Delhi Jal Board–I, Delhi Jal Board–II, HUDA Sector-24, and Janakpuri. These projects are being carried out with an existing workforce of approximately 105 employees and workers and are expected to generate an estimated revenue of approximately ₹150 crore.

As per records available with the Ministry of Corporate Affairs (MCA), KKSpun India Limited has filed its latest audited financial statements for the financial year ended 31 March 2024. The Company's last Annual General Meeting (AGM) was duly held on 30 September 2024, and the financial statements for the year ended 31 March 2024 were audited in accordance with applicable law.

Further, As disclosed in the Information Memorandum issued under Section 29 of the Insolvency and Bankruptcy Code, 2016 read with Regulation 36 of the CIRP Regulations, the Insolvency Professional had initially made available only the audited financial statements of the Corporate Debtor for the financial years ended 31 March 2024 and 31 March 2023.

The audited financial statements for the financial year ended 31 March 2025, as well as the provisional financial statements for the period up to 11 July 2025 (being the Insolvency Commencement Date), were not provided at the time of issuance of the Information Memorandum, as the same had not been made available by SBD to the Resolution Professional.

Subsequently, upon receipt of the aforesaid financial statements from SBD, the Resolution Professional uploaded the same on the Virtual Data Room (VDR) for access by the Prospective Resolution Applicants, in compliance with Regulation 36B and the principles of transparency under the Code.

2.5 CORPORATE INSOLVENCY RESOLUTION PROCESS (CIRP) OF KKSPUN INDIA LIMITED.

M/s Yes Bank filed an application through its Senior Vice President/ Authorised Representative, Mr Ekansh Kumar, under Section 7 of the Insolvency & Bankruptcy code, 2016 against M/s KKSpun India Limited upon default of Rs. 60,94,00,000/ (INR Sixty Crores and Ninety-Four Lakhs Only) on 21.12.2023. The Hon'ble Adjudicating Authority, National Company Law Tribunal, Court IV, New Delhi Bench vide its order dated 11.07.2025 under CP (IB) No. – 36(ND)/2024 initiated the Corporate Insolvency Resolution Process (CIRP) of KKSpun India Limited (KSIL) and appointed **Mr. Harvinder Singh,** Insolvency Professional, having Registration No. IBBI/IPA-001/IP-P00463/2017-18/10806 as Interim Resolution Professional (IRP). The copy of the order was received by the IRP from the registry as on 12.07.2025. In the first CoC meeting, the IRP was confirmed as RP by the members of the CoC.

Source: IM, order dated 07.11.2025, Minutes of COC Meetings

2.6 SHARE CAPITAL OF THE CORPORATE DEBTOR AS ON DATE

Particulars	Number of Shares	Amount (INR)
Authorised Share Capital	5,00,00,000	Rs 50,00,00,000
Paid-up Share Capital	1,28,98,123	Rs 12,89,81,230
Face Value per Share	10/-	

Note: Based on the Information Memorandum.

2.7 THE NAMES AND ADDRESSES OF THE MEMBERS OR PARTNERS HOLDING AT LEAST ONE PERCENT STAKE IN THE CORPORATE DEBTOR ALONG WITH THE SIZE OF STAKE

Shareholders holding more than 1% shares as on 31.03.2024, as provided by corporate debtor are as under. Further, the face value of each share is Rs. 10/-.

Sr. No.	Name of the Shareholder	No. of Shares as on 31.03.2024
1	HIMANSHU GUPTA	65,87,465
2	JAISHREE GUPTA	3,04,439
3	KAVISH GUPTA	60,06,009
Total		1,28,97,913

Note: Based on Information Memorandum.

SECTION-3 : DETAILS OF THE RESOLUTION APPLICANT

3.1 OVERVIEW OF RESOLUTION APPLICANT

The Resolution Applicant is led by Mrs Jaishree Gupta, an experienced business administrator with long-standing exposure to managing and overseeing infrastructure and manufacturing-oriented businesses. Supported by a competent technical, financial, and managerial team, the Resolution Applicant possesses the requisite expertise, organizational capability, and financial acumen to revive the Corporate Debtor as a going concern and successfully implement the Resolution Plan in line with the objectives of the Insolvency and Bankruptcy Code, 2016.

3.2 MEMBERS OF RESOLUTION APPLICANT

Sr. No.	Name	PAN	DIN
1.	Jaishree Gupta	AAKPG2696Q	07816060

3.3 BRIEF ABOUT RESOLUTION APPLICANT

a. **Mrs. Jaishree Gupta:** Mrs. Jaishree Gupta, born on 21 June 1960, hails from a reputed Marwari business family of Kolkata, West Bengal, and brings with her decades of exposure to business administration and enterprise management. After completing her education from Loreto Convent School, Kolkata, she married late Mr. Pramod Kumar Gupta, a seasoned entrepreneur, and subsequently relocated to Ballabgarh, Haryana, where she actively supported and participated in managing the family's business operations.

Following the untimely demise of her husband on 19 January 2020, Mrs. Gupta assumed a leadership role with resilience and commitment, ensuring continuity and stability of the business. She is presently supported by a well-structured technical and financial team comprising experienced professionals, skilled technical experts, and competent financial advisors, enabling effective management of production, quality control, procurement, finance, statutory compliance, and strategic planning. Her leadership fosters accountability, operational discipline, and long-term vision, ensuring seamless functioning of the organization while upholding the strong legacy

established by her family. She possesses over 30 years of professional experience, supported by a dedicated team comprising 105 employees currently on the rolls of the Corporate Debtor, along with her two sons, who are actively involved in the business operations.

b. The significant financial figures of the resolution applicants and its associated concern are as under:

		Rs in Lakhs
Year	**Gross Income**	**Net Worth (Market Price)**
2022-23	236.26	6,704.72
2023-24	121.41	8,067.75
2024-25	98.50	8,669.66

3.4 CONSTITUTION OF RESOLUTION APPLICANT

The Resolution Applicant is an individual applicant and shall make the requisite investment on a sole and exclusive basis in accordance with the terms of the present Resolution Plan.

The Resolution Applicant ("**RA**") shall be entitled to incorporate or nominate a **new company or special purpose vehicle (SPV)**, fully compliant with **Section 29A of the Insolvency and Bankruptcy Code, 2016**, whether promoted by the RA and/or its **Associates**, for the purposes of implementing this Resolution Plan.

3.5 OTHER KEYMEN PERSONNEL

The Resolution applicants for the purpose of revival, stabilization, and efficient management of the business of the Corporate Debtor, the Resolution Applicant proposes to engage professionals possessing relevant expertise and experience in the existing business activities of the Corporate Debtor. In this regard, the Resolution Applicant has obtained consent from the following professionals for their engagement:

- **Shri Kavish Gupta**, holding a **Bachelor's degree in Mechanical Engineering from the University of Bath, United Kingdom**, has been actively associated

with the industry since **2010** and has been working in the family business comprising the Corporate Debtor, with hands-on exposure to technical and operational aspects.

- **Shri Himanshu Gupta**, holding a **Bachelor's degree in Mechanical Engineering from Amity University**, has been engaged in the industry since **2003** and has extensive experience in managing and operating the family business comprising the Corporate Debtor.

- **Chief Financial Officer (CFO)** – A qualified and experienced finance professional shall be appointed to oversee financial management, accounting, budgeting, statutory compliances, and liaison with lenders and other stakeholders.

3.6 ELIGIBILITY OF RESOLUTION APPLICANT

The Resolution Applicant has already demonstrated its capability in terms of meeting out the Eligibility Criteria as set out by the CoC at the time of applying for EOI.

3.7 OBJECTIVE OF THE RESOLUTION APPLICANT

The primary objective of the Resolution Applicant, in strict compliance with the provisions of the Insolvency and Bankruptcy Code, 2016 ("IBC"), is as under:

- **To continue the existing operations of the Corporate Debtor as a going concern**, in accordance with the fundamental objective of the IBC as laid down under **Section 20, Section 25(2)(c), and Section 31**, ensuring preservation of asset value and business continuity.
- **To maximise the value of the assets of the Corporate Debtor**, for the benefit of all stakeholders, including financial creditors, operational creditors, employees, and other statutory authorities, as envisaged under **Section 30(2)(b)** of the IBC.

- **To ensure revival and sustainable restructuring of the Corporate Debtor**, through financial reorganisation, operational improvements, and infusion of necessary funds, thereby avoiding liquidation under **Chapter III of the IBC**.
- **To protect employment and interests of employees and workmen** by maintaining ongoing business activities and complying with applicable labour laws and statutory obligations.
- **To achieve effective resolution of insolvency in a time-bound manner**, consistent with the objectives of the IBC, thereby restoring the Corporate Debtor to long-term financial viability.
- **To comply with all applicable provisions of the IBC, CIRP Regulations, Companies Act, 2013, and other applicable laws**, ensuring transparency, fairness, and equitable treatment of stakeholders.

SECTION-4 FINANCIAL PROJECTIONS

4.1 The Resolution Applicant proposes to revive the Corporate Debtor as a going concern through the infusion of estimated fresh working capital, determined on the basis of the operational requirements of new and ongoing projects to be undertaken post approval of the Resolution Plan. The proposed working capital shall be funded through a combination of promoter's equity contribution and sanctioned working capital facilities from banks and/or financial institutions. Based on conservative, prudent and industry-aligned assumptions, the key financial projections of the Corporate Debtor are as under:

Particulars	Year 1	Year 2	Year 3
Turnover (₹ in Crores)	50	65	80
Gross Profit Ratio (% of Turnover)	10%	10%	10%
Net Profit Ratio (% of Turnover)	0.5% – 1%	0.5% – 1%	0.5% – 1%
Working Capital Requirement (₹ in Crores)	2.50	3.25	4.00

The above projections reflect a phased scale-up of operations, stable margin assumptions, and disciplined working capital management.

4.2 These projections are premised upon reinstatement of operational capacity, rationalization and optimization of cost structures, improved receivables management, strengthened vendor relationships, and restoration of customer confidence upon approval of the Resolution Plan. The projected cash flows demonstrate sufficient internal accruals to meet operational expenses, statutory dues, and repayment obligations as envisaged under this Resolution Plan, thereby establishing its commercial feasibility and financial viability in terms of Section 30(2) of the Insolvency and Bankruptcy Code, 2016 read with Regulation 38 of the CIRP Regulations.

4.3 Notwithstanding anything contained herein, any losses, liabilities, or financial impact attributable to the CIRP period up to the Effective Date shall stand appropriated and dealt with in accordance with the approved Resolution Plan. The Resolution Applicant shall not be liable for any prior period losses, contingencies, or claims pertaining to the CIRP period unless expressly assumed under this

Resolution Plan. Upon approval under Section 31 of the Code, the Resolution Plan shall be binding on all stakeholders, and the Corporate Debtor shall be entitled to the benefit of the clean slate principle as recognized under applicable judicial precedents.

SECTION-5 BUSINESS PLAN

5.1. BUSINESS PLAN OF THE RESOLUTION APPLICANT IN RELATION TO THE CORPORATE DEBTOR:

The Resolution Applicant ("RA") has formulated a comprehensive and structured business plan outlining the roadmap for revival, stabilization, and sustainable growth of the Corporate Debtor post-approval of the Resolution Plan. The plan is not merely a conventional long-term strategic framework but constitutes a detailed implementation blueprint comprising clearly defined milestones aimed at achieving operational, financial, and strategic objectives.

The proposed plan focuses on effective integration of the Corporate Debtor with the RA's vision, undertaking organic growth initiatives, capacity enhancement, and forming strategic alliances and joint ventures, wherever feasible. The roadmap also establishes robust governance and monitoring mechanisms to ensure that each proposed initiative is supported by a sound commercial rationale and delivers demonstrable value to all stakeholders, in line with the objectives of the Insolvency and Bankruptcy Code, 2016.

5.2. **Rationale for Acquisition**: The Resolution Applicant firmly believes that the Corporate Debtor can be successfully revived and turned around by leveraging the RA's vision, managerial expertise, technical strength, and financial discipline. The acquisition is driven by the intent to restore the Corporate Debtor as a viable going concern, address operational inefficiencies, and align the business with advanced manufacturing techniques and contemporary industry practices.

5.3. **Human Resources and Workforce Continuity:** The Resolution Applicant proposes to induct and actively involve her sons, Shri Himanshu Gupta and Shri Kavish Gupta, along with other qualified and experienced professionals, to contribute their technical expertise, managerial capabilities, and strategic leadership towards the revival, stabilization, and expansion of the business operations of the Corporate Debtor. The existing workforce comprising approximately 105 employees presently on the payroll of the Corporate Debtor

shall be retained upon approval of this Resolution Plan, subject to applicable provisions of the Insolvency and Bankruptcy Code, 2016, the Companies Act, 2013, and all applicable labour and employment laws. The continuation of such employees shall be aligned with operational requirements and shall remain subject to performance evaluation, business exigencies, and any organizational restructuring undertaken as part of the implementation of this Resolution Plan. Further, in the event of expansion of business operations, scaling of production capacity, diversification of activities, or geographical growth, the Successful Resolution Applicant may recruit additional workforce, including managerial, technical, administrative, and operational personnel, as may be required to support such expansion and ensure sustainable growth of the Corporate Debtor. Further, the Personal Guarantees provided in favour of the Bank(s) / Financial Institution(s) shall continue to remain valid and enforceable in accordance with the terms of the respective Deeds of Guarantee. The approval of the Resolution Plan shall not result in the revocation, extinguishment, or discharge of such guarantees, unless otherwise agreed by the respective lenders in accordance with applicable law. Further, it is clarified that guarantors shall not be entitled to exercise any right of subrogation against the Corporate Debtor in respect of any amounts recovered by the lenders pursuant to invocation of such guarantees, in line with the provisions contained in Clause 6.2.4 of the Resolution Plan.

5.4. **Revival and Capacity Expansion:** The Resolution Applicant shall prioritize revival of the existing manufacturing facility, enhancement of production capacity, and improvement of operational efficiency. The business expansion strategy includes introduction of new products, modernization of processes, and securing new contracts through independent bids, joint ventures, or other legally permissible arrangements, as may be commercially viable.

5.5. **Management Capability and Turnaround Experience:** The management of the Resolution Applicant possesses strong capabilities in building, scaling, and efficiently operating businesses across multiple sectors. The members of the RA and proposed key personnel bring rich and diverse experience, enabling them to successfully revive, stabilize, and transform distressed enterprises into profitable

and sustainable businesses. The proposed framework focuses on rapid stabilization of operations, followed by a phased financial and operational transformation aimed at restoring stakeholder confidence, strengthening governance, and maximizing long-term value creation. The RA is confident that, with appropriate corrective measures and the current improved economic environment, the factors that led to distress of the Corporate Debtor can be effectively addressed.

5.6. **Key Managerial Personnel:** The Resolution Applicant proposes to constitute a team of experienced **Key Managerial Personnel (KMPs)** with relevant industry exposure to comprehensively understand, manage, and optimize the operations of the Corporate Debtor upon assumption of control.

5.7. **Background of the Resolution Applicant:** The Resolution Applicant, **Mrs. Jaishree Gupta**, is an experienced entrepreneur with decades of hands-on exposure in managing and overseeing business operations. She has demonstrated strong leadership, administrative acumen, and resilience in guiding businesses through challenging phases. The RA has a proven track record of nurturing enterprises from inception and ensuring their sustainable growth through prudent decision-making and disciplined execution.

5.8. **Business Revival and Funding Strategy:**

5.8.1. As part of the business revival strategy, the Resolution Applicant proposes to secure new business by participating in tenders independently and/or in association with other entities through joint ventures, consortiums, or other legally permissible structures. Additionally, the RA intends to infuse further funds into the Corporate Debtor by enhancement of existing banking facilities and/or by securing increased credit limits from banks and financial institutions, subject to approvals and commercial feasibility.

5.8.2. The Resolution Applicant shall infuse the requisite funds for implementation of this Resolution Plan through a combination of (i) monetisation of her personal fixed assets, and/or (ii) borrowings from banks and/or financial institutions, and/or (iii) such other lawful financial

arrangements as may be required to ensure timely and effective implementation of the Plan.

5.8.3. ***Protection and Continuity of Uninvoked Bank Guarantees:*** *As a key value proposition under this Resolution Plan, the Resolution Applicant expressly commits to ensuring continuity, protection, and orderly management of the existing bank guarantees aggregating to the amount as per RFRP/VDR, in the manner set out below:*

5.8.3.1. *In respect of all bank guarantees that are valid and subsisting as on the Effective Date ("Uninvoked Bank Guarantees"), the Resolution Applicant shall use its best commercial efforts to prevent any further invocation of such guarantees after the Effective Date, including by ensuring timely compliance with the underlying contractual obligations wherever commercially feasible.*

5.8.3.2. *From the date of approval of this Resolution Plan by the Committee of Creditors ("CoC Approval Date") until the Effective Date, the Resolution Applicant shall extend protection equivalent to 50% of the aggregate value of the Uninvoked Bank Guarantees. Accordingly, in the event any such bank guarantee is invoked during this period, the Resolution Applicant shall reimburse 50% of the amount so invoked, subject to the terms of this Resolution Plan.*

5.8.3.3. *From the Effective Date onwards, the Resolution Applicant shall provide 100% protection in respect of the Uninvoked Bank Guarantees. In the event of any invocation of such bank guarantees on or after the Effective Date, the Resolution Applicant shall reimburse 100% of the amount paid by the concerned bank(s) and/or financial institution(s) pursuant to such invocation.*

5.8.3.4. Any reimbursement payable under Clauses (b) and (c) above shall be made within 89 (Eighty-Nine) days from the Effective Date, together with interest at the rate of 8% (Eight Percent) per annum, calculated from the date on which the concerned bank(s) and/or financial institution(s) make payment under the invoked bank guarantee until the date of reimbursement, subject to applicable law and the terms of this Resolution Plan.

5.8.3.5. This commitment demonstrates the Resolution Applicant's intent to preserve business credibility, maintain banking relationships, and support uninterrupted operations of the Corporate Debtor during the post-approval implementation phase.

5.8.3.6. For abundant clarity, the above undertaking shall not be construed as an assumption of liability for any invocation arising from events or defaults occurring prior to the Effective Date, except to the limited extent of the protection expressly provided under Clause (b) from the CoC Approval Date.

5.8.4. Further, the Resolution Applicant hereby confirms that, in the event of any proposed infusion of debt under the Resolution Plan, such debt shall be independently arranged by the Resolution Applicant or its identified financiers, without any obligation, commitment, or liability on the part of the members of the Committee of Creditors to provide, arrange, or facilitate such funds.

5.9. **Organizational and Governance Framework:** The Resolution Applicant has envisaged a structured organizational framework for the Corporate Debtor comprising three levels of management, namely:

- **Top Management**
- **Middle Management**
- **Operational Level**

Dedicated functional teams shall be established for Marketing, Technology, Human Resources, Legal, Accounts, Taxation, Production, Procurement, Information Technology, Operations, and allied functions. This structure is intended to ensure effective governance, accountability, operational efficiency, and sustainable business operations in accordance with best industry practices.

5.10. **Approval/Permissions:** The RA hereby confirm and affirm that as necessary as per Central Laws and State Laws applicable approvals/permissions/licenses etc., shall be taken whenever and wherever necessary as may deem fit for the effective running of the business with in the stipulated time period of one year from the approval date.

5.10.1. The Resolution Applicant confirms that, based on its assessment of the proposed transaction, the nature of the Resolution Plan, and the applicable thresholds under the Competition Act, 2002, no prior approval, notification, or clearance from the Competition Commission of India ("CCI") is presently required for implementation of this Resolution Plan. Accordingly, the Resolution Applicant is of the view that the proposed acquisition / resolution transaction does not trigger any mandatory filing requirement before the CCI under the applicable provisions of law as on the date of submission of the Resolution Plan. However, in the event any requirement for approval, notification, or clarification from the CCI arises subsequently due to change in facts, structure of the transaction, turnover / asset thresholds, or applicable law, the Resolution Applicant shall take such necessary steps as may be required in accordance with law, without prejudice to implementation of the Resolution Plan.

SECTION-6: FINANCIAL PROPOSAL AND SETTLEMENT OF THE CLAIMS

The resolution applicant has formulated and is presenting this resolution plan for the resolution of the insolvency of the Corporate Debtor, by addressing the dues of the Creditors appropriately, it is clarified that the said financial proposal is subject to negotiations with the Committee of Creditors and thus, can be revised by the Resolution Applicant accordingly.

Accordingly, this Chapter details the manner in which the interests of all stakeholders, including financial creditors and Operational Creditors, of the Corporate Debtor have been dealt by the Resolution Applicant in terms of Regulation 38(1A) of the CIRP Regulations.

6.1 PROPOSAL FOR CIRP COSTS

As informed by the Resolution Professional, the total estimated Insolvency Resolution Process Costs ("CIRP Costs"), including the fees and expenses payable to the Resolution Professional, costs incurred during the Corporate Insolvency Resolution Process, and applicable regulatory fees in accordance with Circular No. IBBI/IP/56/2022 dated 24 November 2022 issued by the Insolvency and Bankruptcy Board of India ("IBBI"), have been estimated at INR 50,00,000 (Rupees Fifty Lakhs only) or the actual unpaid CIRP Costs as on the Effective Date, in accordance with the provisions of the Insolvency and Bankruptcy Code, 2016 ("Code") read with the Insolvency Resolution Process for Corporate Persons Regulations, 2016 ("CIRP Regulations").

As on the date of submission of this Resolution Plan, no CIRP Costs are reported by the Resolution Professional to be outstanding. It is anticipated that the operational cash flows of the Corporate Debtor shall be adequate to discharge the CIRP Costs up to the Effective Date. However, in the event that any CIRP Costs remain unpaid as on the Effective Date, whether on account of insufficiency of cash flows or otherwise, such unpaid CIRP Costs shall be paid in full by the Resolution Applicant.

The Resolution Applicant hereby irrevocably undertakes to pay the CIRP Costs, being INR 50,00,000 (Rupees Fifty Lakhs only) or the actual unpaid CIRP Costs as on the Effective Date, in priority to all other payments contemplated under this Resolution Plan, in strict compliance with Section 30(2)(a) of the Insolvency and Bankruptcy Code, 2016. Such payment shall be made in full within sixty (60) days from the Effective Date or within such earlier period as may be directed by the Adjudicating Authority.

6.2 PROPOSAL FOR FINANCIAL CREDITORS

As per the IM, the admitted claims of the Secured Financial Creditors are as follows:

S.No.	Name of Secured Financial Creditors	Amount Claimed (Rs)	Amount Admitted (Rs)
1	State Bank of India (Principal Borrower)	2,61,40,45,489	2,50,00,01,650
2	IndusInd Bank	1,66,34,36,078	1,66,34,36,078
3	Bank of India	97,28,24,700	97,24,35,087
4	Axis Bank Limited	92,01,22,418	92,01,22,418
5	Yes Bank	60,44,93,494	59,26,89,494
6	HDFC Bank	39,55,90,762	37,38,78,762
7	Central Bank of India	25,51,88,393	24,32,45,671
8	UCO Bank	16,47,34,573	16,47,34,573
9	Bank of Baroda	15,69,84,076	15,66,87,196
10	ICICI Bank Limited	13,04,46,845	10,81,99,245
11	IDFC Bank First	42,56,97,646	40,04,55,563
12	Oxyzo Financial Services Private Limited	6,46,91,616	-
	Total	**8,36,82,56,090**	**8,09,58,85,737**

The admitted claims of unsecured financial creditors of the Corporate Debtor is as follows:

Sr. No.	Name of the Unsecured Financial Creditor	Amount Claimed (Rs.)	Amount Admitted (Rs.)
1	State Bank of India (for Corporate Guarantee)	46,44,03,320	46,40,85,196
TOTAL		46,44,03,320	46,40,85,196

The Resolution Applicant has duly considered the claims admitted in the CIRP and proposes to pay an aggregate amount of ₹59,10,90,000 to the Financial Creditors. The proposed consideration comprises (i) a sum of ₹ 59,10,90,000 towards all the assets of the Corporate Debtor save and except arbitration proceeds to be funded through monetisation of fixed assets and/or borrowings from banks /financial institutions, and

(ii) Arbitration Proceeds:

In addition to above, any amounts realized, recovered, received, or otherwise made available pursuant to the arbitration proceedings, including any settlements, awards, decrees, or related realizations ("Arbitration Proceeds"), shall be dealt with in the following manner and strictly in accordance with the terms of this Resolution Plan:

a. All costs, expenses, legal fees, professional fees, taxes, duties, charges and other incidental expenditures incurred or payable in connection with the initiation, conduct, prosecution, defence, enforcement, recovery or realization of the Arbitration Proceeds shall be solely borne and funded by the Successful Resolution Applicant ("SRA").
b. Subject to Clause (c) below, any Arbitration Proceeds actually received and realized shall, after deduction of applicable taxes and statutory levies, be distributed between the SRA and the Assenting Unrelated Financial Creditors on an actual receipt basis in the following ratio:
   i. Thirty percent (30%) of the Arbitration Proceeds net of taxes shall be

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distributed to the Assenting Unrelated Financial Creditors; and

ii. Seventy percent (70%) of the Arbitration Proceeds shall accrue to and be retained by the Successful Resolution Applicant (SRA).

c. Notwithstanding anything contained herein, the entitlement of the Assenting Unrelated Financial Creditors to receive their share of the Arbitration Proceeds shall arise only upon the return, discharge, release, cancellation, expiry or extinguishment of any bank guarantee furnished by or on behalf of the financier funding the arbitration proceedings; or receipt of a written confirmation from such financier confirming that all obligations, liabilities and claims in relation to such funding arrangement and/or bank guarantee stand fully satisfied and discharged.

d. Until the occurrence of the events specified in Clause (c) above, the Assenting Unrelated Financial Creditors shall not have any present or accrued right to claim, demand or receive any portion of the Arbitration Proceeds.

e. The Resolution Applicant acknowledges and represents that it possesses substantial experience and expertise in pursuing, managing, enforcing, and realizing arbitration claims, litigation receivables, and contingent recoveries. Accordingly, the Resolution Applicant shall use commercially reasonable efforts to diligently pursue the arbitration proceedings and maximize recoveries therefrom, subject to applicable law, judicial discretion, arbitral determinations, and enforcement outcomes.

f. To ensure transparency, accountability, and effective monitoring of the arbitration proceedings and related recoveries, an independent qualified professional shall be appointed by the Successful Resolution Applicant with the prior consent of the Assenting Unrelated Financial Creditors. The remuneration payable to such professional shall not exceed ₹50,000 (Rupees Fifty Thousand only) per annum, payable at the rate of ₹12,500 (Rupees Twelve Thousand Five Hundred only) per quarter upon submission of the quarterly progress report. Such remuneration shall be borne separately and shall not form part of the costs, expenses, or deductions contemplated under Clause (a) above.

g. The independent professional shall monitor the progress of the arbitration proceedings and shall submit a detailed quarterly progress report to the

Successful Resolution Applicant and the Assenting Unrelated Financial Creditors, outlining the status of proceedings, recoveries made, enforcement actions undertaken, expected timelines, and such other material developments as may be relevant.

h. For the avoidance of doubt, neither the Successful Resolution Applicant nor the Assenting Unrelated Financial Creditors shall have any guaranteed entitlement to any specific recovery amount. All distributions contemplated under this Clause shall be subject to actual realization of the Arbitration Proceeds and shall be governed by the provisions of this Resolution Plan.

i. Accordingly, the implementation and completion of the Resolution Plan shall not be deferred, delayed, suspended, or postponed on account of the pendency, adjudication, recovery, realization, or receipt of any arbitration proceeds. Upon payment of the aforesaid Resolution Plan amount and contingent claim amount as specified herein, the Resolution Plan shall stand fully implemented and satisfied with effect from the Effective Date, and all obligations of the Successful Resolution Applicant in relation to implementation of the Resolution Plan shall be deemed to have been duly discharged, except for such obligations expressly stated to survive implementation under the Resolution Plan.

j. The Resolution Applicant has substantial experience in handling, pursuing, and realising arbitration and litigation-related receivables and is confident of effectively pursuing the pending arbitration proceeds across various forums. This experience provides reasonable assurance regarding diligent follow-up, enforcement, and maximisation of value from such proceeds, subject to applicable laws and judicial outcomes.

k. The aforesaid amounts shall be distributed to the Assenting Unrelated Financial Creditors in proportion to their respective admitted claims. The amounts payable to the Assenting Unrelated Financial Creditors under this Resolution Plan shall be paid in full, without any adjustment, appropriation or reduction on account of the Corporate Insolvency Resolution Process (CIRP) Cost or any other liability arising pursuant to any order or direction of the

Hon'ble Adjudicating Authority. Any additional CIRP Cost or other liability, if any, shall be borne and paid separately by the Successful Resolution Applicant. The distribution shall be effected strictly in accordance with the provisions of the Insolvency and Bankruptcy Code, 2016 and the CIRP Regulations.

l. It is further clarified that any amounts receivable pursuant to pending arbitration proceedings shall be realized and distributed on a receipt basis as and when actually received in the manner as prescribed in the resolution plan and shall not constitute a condition precedent for implementation, completion, or closure of the Resolution Plan.

S. No.	Name of Secured Financial Creditors	Amount Claimed (Rs)	Amount Admitted (Rs)	Amount Proposed to be paid in Own Funds (Rs.)
1	State Bank of India (Principal Borrower)	2,61,40,45,489	2,50,00,01,650	18,12,25,226
2	IndusInd Bank	1,66,34,36,078	1,66,34,36,078	12,05,82,552
3	Bank of India	97,28,24,700	97,24,35,087	7,04,91,861
4	Axis Bank Limited	92,01,22,418	92,01,22,418	6,66,99,713
5	Yes Bank	60,44,93,494	59,26,89,494	4,29,64,087
6	HDFC Bank	39,55,90,762	37,38,78,762	2,71,02,487
7	Central Bank of India	25,51,88,393	24,32,45,671	1,76,32,889
8	UCO Bank	16,47,34,573	16,47,34,573	1,19,41,616
9	Bank of Baroda	15,69,84,076	15,66,87,196	1,13,58,261
10	ICICI Bank Limited	13,04,46,845	10,81,99,245	78,43,368
11	IDFC Bank First	42,56,97,646	40,04,55,563	2,90,29,041
12	Oxyzo Financial Services Private Limited	6,46,91,616	-	-
	Total	**8,36,82,56,090**	**8,09,58,85,737**	**58,68,71,100**

S. No.	Name of Unsecured Financial Creditor	Amount Claimed (Rs.)	Amount Admitted (Rs.)	Amount Proposed to be paid in Own Funds (Rs.)

1	State Bank of India (For Corporate Guarantee)	46,40,85,196	46,40,85,196	42,18,900

(iii) The payment to be made to the Financial Creditors as above shall be made in the following manner:

Period	% age of total Amount	Amount (Rs)
Upfront Cash payment within 60 days	71.37%	42,18,90,000
Within 360 days	28.63%	16,92,00,000
Total	100.00%	59,10,90,000

The aforesaid amounts are proposed to be distributed between the Secured Financial Creditors and the Unsecured Financial Creditors in the ratio of 99% to the Secured Financial Creditors and 1% to the Unsecured Financial Creditors, or in such proportion as may be determined and approved by the Committee of Creditors (CoC). Such distribution shall be undertaken in accordance with the provisions of the Insolvency and Bankruptcy Code, 2016, including Section 30(4) and Section 53 (to the extent applicable), read with the applicable CIRP Regulations.

In the event that any Financial Creditor dissents from the Resolution Plan, the Resolution Applicant proposes that such dissenting Financial Creditor(s) ("Dissenting Financial Creditors") shall be paid, out of the amounts allocated to the Financial Creditors, in priority over the assenting Financial Creditors, on a pro rata basis at each stage of payment under this Resolution Plan. Further, the amount payable to the Dissenting Financial Creditors shall not be less than the lower of: (i) the amount payable to such Dissenting Financial Creditors in the event of liquidation of the Corporate Debtor under Section 53(1) of the Insolvency and Bankruptcy Code, 2016; or (ii) the amount that would have been payable to such

Dissenting Financial Creditors if the amount to be distributed under this Resolution Plan were distributed in accordance with the order of priority under Section 53(1) of the Insolvency and Bankruptcy Code, 2016, as required under Section 30(2)(ba) of the Insolvency and Bankruptcy Code, 2016, as amended from time to time.

Upon payment in full of the aforesaid settlement amount as per the resolution plan as approved, all security interests, charges, mortgages, hypothecation, pledges, or other encumbrances created by the Corporate Debtor over its own assets in favour of such creditors shall stand deemed satisfied and shall be released/discharged, subject to applicable law.

For the avoidance of doubt, this clause shall apply only to assets owned by the Corporate Debtor and securities created by the Corporate Debtor. Nothing contained herein shall be construed as an automatic extinguishment, waiver, discharge, or release of any independent rights, remedies, collateral securities, or guarantees available to creditors against any third-party guarantor, promoter, erstwhile director, affiliate, or any other person who has furnished separate collateral or guarantees, and all such rights shall continue in accordance with applicable law and contractual terms.

The secured financial creditors shall, within 30 (thirty) days from the date of receipt of full and final payment under the Resolution Plan, hand over all original title deeds, ownership records, financing documents, and other documents relating to the assets of the Corporate Debtor charged in their favour, and shall execute/file all necessary forms, satisfaction of charge documents, mortgage releases, or other filings required for perfection of such release.

Provided further that the concerned secured financial creditors shall, within a reasonable period and in coordination with the Resolution Applicant / Monitoring Committee, furnish relevant documentary particulars, records, or confirmations evidencing possession, custody, or control of the title deeds, security documents, and related records pertaining to the assets of the Corporate Debtor, for the limited purpose of reconciliation, documentation, and smooth implementation of the

Resolution Plan.

For the avoidance of doubt, submission of such documentary particulars shall be treated as an administrative and procedural requirement during the implementation phase and shall not constitute a condition precedent to, nor delay, suspend, or otherwise prejudice, the entitlement of such creditors to receive distributions payable to them under the approved Resolution Plan in accordance with the stipulated timelines.

Any pending reconciliation or handover of documents shall be completed in good faith by the concerned parties within such reasonable time as may be mutually agreed or as directed by the Monitoring Committee, without affecting the validity or timing of payments under the Resolution Plan.

Other terms which shall be applicable with respect to Financial Creditors shall be as follows:

6.2.1. From effective date, any claim from any person claiming to be a secured financial creditor of the Corporate Debtor, that has not been filed with the RP, or if filed, has not been accepted by the RP as payable by the Corporate Debtor, and whether or not such claim appears in the audited / unaudited / provisional books of Accounts or Financial Statement of Corporate Debtor shall stand extinguished and shall no longer be payable.

6.2.2. For the avoidance of doubt, it is clarified that all accrued or unpaid interest, if any, arising on or after the Insolvency Commencement Date and until the effective date, in relation to the Financial Debt of the Corporate Debtor will be written off in full and shall be permanently extinguished and the Corporate Debtor or the Resolution Applicant shall, in no point of time, be directly or indirectly held responsible or liable in relation thereto.

6.2.3. Any invocation of existing Bank Guarantees or appropriation or other enforcement action or demand made in respect of any security, letter of credit, letter of undertaking, letter of comfort, pledge, charge, encumbrance, hypothecation, or collateral provided in connection with any

financial debt or any other debt or obligation of the Corporate Debtor, at any time prior to the effective date, shall stand permanently extinguished. All liabilities and obligations in relation to the aforesaid shall also stand permanently extinguished on the approval of the Resolution Plan by the Hon'ble NCLT.

6.2.4. It is clarified that any personal or corporate guarantee given by the erstwhile promoters / directors / persons in the management of the Corporate Debtor or by any other group company / subsidiary / affiliate of the Corporate Debtor or any other person or entity, to any financial creditor , for securing any loan /facility taken by the Corporate Debtor shall remain alive and enforceable by the Financial Creditors for the recovery of their remaining debts and no subrogation rights will be available to such guarantor(s) against the Corporate Debtor or Resolution Applicant in case any recovery is made by Such Financial Creditor from such guarantor(s).

6.2.5. The RA will also have an option for assignment/novation/transfer of the Financial Debt equivalent upto 2 times of the amount payable to the Financial Creditors as per clause 6.14 in favour of an ARC/ Fund/Company or otherwise, after such assignment/novation/transfer all the claims of Financial Creditors on the Corporate Debtor shall stand extinguished. It further clarified that the Financial Creditors shall be free to pursue its residual claim from the guarantors or any other comfort provider, save and except the Corporate Debtor.

6.3 OPERATIONAL CREDITORS (WORKMEN AND EMPLOYEES)

As per the information Memorandum, the admitted claims of workmen and employees are as follows: -

Sr. No.	Name of Employee	Amount Claimed (Rs.)	Amount Admitted (Rs.)	Amount Proposed to be paid (Rs.)
1	Ankur Singhal	1,61,829	1,43,136	1,43,136
2	Pawan Kumar Tiwari	39,355	Reply awaited	-
3	Rohit Gupta	3,25,000	2,40,000	2,40,000
4	Abhinav Tiwari	1,09,113	-	-
5	Anil Gaur	24,268	-	-
6	Chirag	18,806	-	-
7	Mahipal Singh	1,19,032	-	-
8	Ravinder Kumar	59,417	-	-
9	Sachin Sharma	26,241	-	-
10	Sanjay Kumar Chawla	76,677	-	-
11	Surjeet Shrivastava	7,06,604	-	-
12	Vijay Pal Singh	1,98,387	-	-
13	Virendra Pal Singh	23,044	-	-
14	Pradeep Kumar	1,15,646	-	-
15	Bharat Ujjainwal	6,503	-	-
16	Minakshi Mohapatra	20,318	-	-
17	Sonu Kumar	21,242	-	-
18	Bhagawat Prashad	25,697	-	-
19	Ankit Kumar	44,306	-	-
20	Ashok Kumar	23,742	-	-
21	Gurpal Singh	34,387	-	-
22	Pankaj Kumar Sinha	48,836	-	-
23	Gajendra Singh	10,516	-	-
24	Himayal	39,677	-	-
25	Moolchand	35,048	-	-

26	Rahul Agnihotri	62,823	-	-
27	Shubham Kumar	5,161	-	-
28	Subrata Mandal	72,742	-	-
29	Vinay Kumar Srivastava	17,971	-	-
30	Vishal Sonkar	19,971	-	-
31	Vivek Shankar Mishra	1,25,645	-	-
32	Arvind Kumar	26,452	-	-
33	Dinesh Kumar	15,871	-	-
34	Gaurav Kumar	8,065	-	-
35	Jitendra Kumar	4,839	-	-
36	Pankaj Kumar Baitha	29,758	-	-
37	Rahul Savita	29,097	-	-
38	Rudresh Kumar Pandey	26,981	-	-
39	Jay Ram Verma	30,419	-	-
40	Birendra Kumar Maurya	31,610	-	-
41	Ramchele Patel	24,334	-	-
42	Chandra Shekher	5,839	-	-
43	Deepak Saini	9,677	-	-
44	Kapil Kumar	4,548	-	-
45	Pradeep Saini	4,871	-	-
46	Ajay	29,321	-	-
47	Anoop Singh	16,419	-	-
48	Bipin Kumar Singh	15,129	-	-
49	Mukul Agarwal	79,355	-	-
50	Rupesh Kumar Patel	26,944	-	-
51	Brijesh Kumar	79,355	-	-
52	Harender Singh	30,378	-	-
53	Mukesh Pandey	46,249	-	-
54	Amajad	23,199	-	-
55	Anshul Rawat	99,194	-	-
56	Chandrbhan Prasad	24,958	-	-
57	Danvir Singh	1,38,710	-	-
58	Dayanand Kimothi	40,268	-	-

59	Faqar Din	29,088	-	-
60	Jakir	26,962	-	-
61	Karu Ram	25,327	-	-
62	Mahender Kumar	38,100	-	-
63	Pawan Kumar	33,725	-	-
64	Omendra Kumar Sharma	46,290	-	-
65	Naresh Kumar	29,314	-	-
66	Rajendra Singh	1,05,806	-	-
67	Sunil Kumar	30,460	-	-
68	Vikram Yadav	35,617	-	-
69	Beeru Verma	21,565	-	-
70	Gunesh	25,929	-	-
71	Kishor Kumar Thakur	28,473	-	-
72	Raghvendra Tiwari	36,382	-	-
73	Shyam Sunder	89,801	-	-
74	Gavind Nath Dubey	2,88,350	-	-
75	Mirtunjay Kumar	20,825	-	-
76	Abhishek Yadav	83,064	-	-
77	Ravi Chaudhary	67,143	-	-
78	Satyendra Singh	46,000	-	-
79	Siddhart Sharma	1,11,000	-	-
80	Roshan Lal	44,184	-	-
81	Manoj Srivastav	74,000	-	-
82	Nalin Kant	21,39,775	-	-
83	Sanjeev Kumar Jha	1,45,888	-	-
84	Mandeep Rawat	92,671	-	-
85	Anil Singh Yadav	19,862	-	-
	Total	**72,55,445**	**3,83,136**	**3,83,136**

The resolution applicant has considered and proposes to pay a sum of Rs 3,83,136 to these creditors.

Other terms which shall be applicable with respect to Operational Creditors (Workmen and Employees) shall be as follows:

6.3.1. Resolution Professional received claim From effective date, any claim

from any person claiming to be a unsecured financial creditor of the Corporate Debtor, that has not been filed with the RP, or if filed, has not been accepted by the RP as payable by the Corporate Debtor, and whether or not such claim appears in the audited/unaudited / provisional books of Accounts or Financial Statement of Corporate Debtor shall stand extinguished and shall no longer be payable.

6.4 OPERATIONAL CREDITORS – GOVERNMENT DUES

As per Information Memorandum / the List of Creditors as provided in IM / as updated by the RP subsequent thereto, creditors in this category have submitted claims amounting to **Rs. 14,00,10,525/-** (in case RP has not included name of any creditor, who has filed the claim and whose claim has been rejected by the RP in full, in the list of Creditors in this category, such creditors will also be governed by the terms of this Resolution Plan) and RP has admitted the said claims for an amount of **Rs. 5,48,81,621/-**.

Sr. No.	Name of the Operational Creditor (Government Dues)	Amount Claimed (Rs.)	Amount Admitted (Rs)	Voting Share
1	Employees' State Insurance Corporation	8,408	3,634	-
2	Central Excise and Central Goods and Services Tax Division-Tijara, Bhiwadi	6,75,000	-	-
3	State Tax Department Gujarat formerly known as Commercial Tax Department – Gujarat	3,50,74,313	3,34,70,246	-
4	Excise and Taxation Department	2,14,34,077	2,13,89,077	-
5	State Tax Department, Bhiwadi	8,26,29,103	Reply Awaited	-
6	EPFO, Haryana	1,89,624	18,664	-
TOTAL		**14,00,10,525**	**5,48,81,621**	**-**

Although the Resolution Applicant are not informed about the liquidation value of the CD, but the Resolution Applicant understood that the liquidation value of the CD shall not be sufficient to repay the debt of even the secured creditors and therefore, the liquidation value applicable to Operation Creditors in terms of sub clauses (i) and (ii) of Section 30(2)(b) would be NIL. As such, it is proposed to pay to Operational Creditors (Government Dues including EPF & ESIC Dues), Rs 1,22,298 on approval of the resolution plan or to the extent of liquidation value

attributable to such Operational Creditors (including EPF & ESIC dues), whichever is higher.

The summary of amount proposed to be paid to the Operational Creditors (Government Dues) is as under:

Sr. No.	Name of the Operational Creditor (Government Dues)	Amount Claimed (Rs.)	Amount Admitted (Rs.)	Amount Proposed to be paid (Rs.)
1	Employees' State Insurance Corporation	8,408	3,634	3,634
2	Central Excise and Central Goods and Services Tax Division-Tijara, Bhiwadi	6,75,000	-	-
3	State Tax Department Gujarat formerly known as Commercial Tax Department - Gujarat	3,50,74,313	3,34,70,246	60,000
4	Excise and Taxation Department	2,14,34,077	2,13,89,077	40,000
5	State Tax Department, Bhiwadi	8,26,29,103	Reply Awaited	-
6	EPFO, Haryana	1,89,624	18,664	18,664
TOTAL		**14,00,10,525**	**5,48,81,621**	**1,22,298**

6.4.1. As per the IM, a claim amounting to ₹1,89,624/- has been received from the Regional Provident Fund Commissioner, Haryana, which has been classified under the category of Operational Creditors (Government Dues). Out of the said claim, an amount of ₹18,664/- has been admitted by the Resolution Professional. The Resolution Applicant proposes to pay in full any amount towards Provident Fund dues relating to Employees/Workmen of the Corporate Debtor, to the extent such dues are excluded from the liquidation estate in terms of Section 36(4)(a)(iv) of the Insolvency and Bankruptcy Code, 2016, read with the prevailing judicial precedents of the Hon'ble NCLT, Hon'ble NCLAT, the Jurisdictional High Court, and the Hon'ble Supreme Court. . Further, no amount shall be payable in respect of Provident Fund demands raised pursuant to assessments made after the

commencement of the CIRP period, in view of the settled legal position laid down by the Hon'ble NCLAT in the following cases:

- *CA Pankaj Shah v. EPFO & Anr.*
- *EPFO v. Jaykumar & Sanjay Kumar*

6.4.2. As per the IM, a claim amounting to ₹8,408/- has been received from the Employees' State Insurance Corporation (ESIC) and has been classified under the category of Operational Creditors (Government Dues). Out of the said claim, an amount of ₹3,634/- has been admitted by the Resolution Professional. The Resolution Applicant proposes to pay, in full, any amount towards Employees' State Insurance (ESI) dues pertaining to the Employees/Workmen of the Corporate Debtor, to the extent such dues are not includible in the liquidation estate, in terms of Section 36(4)(a)(iv) of the Insolvency and Bankruptcy Code, 2016, read with the prevailing judicial pronouncements of the Hon'ble NCLT, Hon'ble NCLAT, the Jurisdictional High Court, and the Hon'ble Supreme Court. . Further, no amount shall be payable in respect of ESI demands arising out of assessments made after the commencement of the CIRP period.

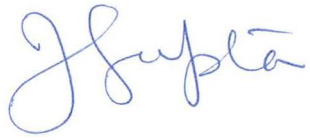
However, the RA undertakes that despite such revision in the admitted amount or admission of new claim, the claims of EPFO & ESIC shall be paid in full.

On approval of this Resolution Plan by Hon'ble Adjudicating Authority and release of committed payment by Resolution Applicant, all the cases/suits, if any, filed by claimants under this category (required to / eligible to file claim under this category in terms of provisions of IBC) against the corporate debtor on account of their dues shall stand settled without any further action and such person shall not have any other legal remedy and shall be made payment as envisaged under this Resolution Plan.

On approval of this resolution plan by Hon'ble Adjudicating Authority claimants under this clause whose claims have been admitted and payment to whom has been proposed under this Resolution Plan, if there are any, shall be paid an amount as

proposed in this Plan by the Resolution Applicant. Proof of release of such payment will be treated as proof of full and final settlement of dues towards such creditor and the balance amount of dues towards such creditors shall stand extinguished and shall be written off in the books of account of Corporate Debtor.

On approval of this resolution plan by Hon'ble Adjudicating Authority and release of committed payment by Resolution Applicant, Creditors who (in terms of provisions of IBC) are required to / eligible to file claims under this category on account of any kind of liability which could arise towards such creditor which is due or contingent, asserted or unasserted, crystalized or uncrystallised, known or unknown, secured or unsecured, disputed or undisputed, in relation to the period up to the Insolvency Commencement Date and have not filed the claim with the Resolution Professional OR whose claim has been rejected by the Resolution Professional, if there are any, dues towards such creditor if reflected / not reflected as due / contingent in the books of account / annual accounts / any other document of the Corporate Debtor shall stand extinguished permanently without any liability on the Corporate Debtor / Resolution Applicant and shall be written off in the books of account / annual accounts of the Corporate Debtor. In case any such creditor has initiated any legal action by filing a suit / invoking arbitration etc., such suit / arbitration etc. shall become redundant and shall cease to have its legal force and will be closed by the concerned authority without any liability on the Resolution Applicant / Corporate Debtor.



6.5 OPERATIONAL CREDITORS (OTHER THAN WORKMEN & EMPLOYEES & STATUTORY AUTHORITIES)

As per Information Memorandum / the List of Creditors as provided in IM / as updated by the RP subsequent thereto, creditors in this category have submitted claims amounting to **Rs. 1,17,82,75,705/-** (in case RP has not included name of any creditor, who has filed the claim and whose claim has been rejected by the RP in full, in the list of Creditors in this category, such creditors will also be governed by the terms of this Resolution Plan) and RP has admitted the said claims for an amount of **Rs. 17,97,94,989/-**.

Sr. No.	Name of the Operational Creditor (Government Dues)	Amount Claimed (Rs.)	Amount Admitted (Rs.)
1	ARGS Infra	27,25,368	Reply Awaited
2	Insituform Pipeline Rehabilitation Private Limited	1,98,97,469	1,98,97,469
3	Ms Bamrah Pipes	41,39,561	30,11,040
4	Ms DH Construction	1,91,44,468	1,07,55,019
5	RR Infra	2,46,24,509	2,46,24,509
6	Regal Enterprises	2,36,67,637	1,62,81,864.06
7	TK Elevator India Private Limited	55,134	22,657
8	Swastik Trading Company	72,18,861	72,18,861
9	Relineeurope GMBH	8,40,94,934	8,40,94,934
10	RMD Steels	1,24,60,691	98,84,300
11	MAVIS IT SERVICES PVT LTD	5,45,739	5,34,901
12	N. K.Trading & Const Co.	17,75,413	15,45,847.81
13	Conteknik Enterprise	2,21,334	2,21,334
14	Contech Equipments	8,86,185	8,86,185
15	Buildcon Equipments	8,16,068	8,16,068
16	Sterling Interprises	30,11,29,960	-
17	Shri Sai infrastructures	30,66,94,278	-
18	Usha Spun pipes	2,28,323	-
19	Kamal Builder	31,16,83,440	-
20	New Glorious Infra Build Tech Pvt. Ltd.	2,79,15,980	-
21	Radhe RCC Products	49,14,776	-
22	Santosh bricks	3,43,592	-
23	M R constructions	2,27,41,980	-
24	Sakshi enterprises	3,50,005	-

TOTAL	1,17,82,75,705	17,97,94,989

Although the Resolution Applicant are not informed about the liquidation value of the CD, but the Resolution Applicant understood that the liquidation value of the CD shall not be sufficient to repay the debt of even the secured creditors and therefore, the liquidation value applicable to Operation Creditors in terms of sub clauses (i) and (ii) of Section 30(2)(b) would be NIL. As such, it is proposed to pay to Operational Creditors a lumpsum payment of Rs 1,04,566 on approval of the resolution plan or to the extent of liquidation value attributable to such Operational Creditors, whichever is higher.

The summary of amount proposed to be paid to the Operational Creditors is as under:

Sr. No.	Name of the Operational Creditor (Government Dues)	Amount Claimed (Rs.)	Amount Admitted (Rs.)	Amount Proposed to be paid (Rs.)
1	ARGS Infra	27,25,368	Reply Awaited	-
2	Insituform Pipeline Rehabilitation Private Limited	1,98,97,469	1,98,97,469	11,572
3	Ms Bamrah Pipes	41,39,561	30,11,040	1,751
4	Ms DH Construction	1,91,44,468	1,07,55,019	6,255
5	RR Infra	2,46,24,509	2,46,24,509	14,321
6	Regal Enterprises	2,36,67,637	1,62,81,864.06	9,469
7	TK Elevator India Private Limited	55,134	22,657	13
8	Swastik Trading Company	72,18,861	72,18,861	4,198
9	Relineeurope GMBH	8,40,94,934	8,40,94,934	48,908
10	RMD Steels	1,24,60,691	98,84,300	5,749
11	MAVIS IT SERVICES PVT LTD	5,45,739	5,34,901	311
12	N. K.Trading & Const Co.	17,75,413	15,45,847.81	899
13	Conteknik Enterprise	2,21,334	2,21,334	129
14	Contech Equipments	8,86,185	8,86,185	515
15	Buildcon Equipments	8,16,068	8,16,068	475
16	Sterling Interprises	30,11,29,960	-	-
17	Shri Sai infrastructures	30,66,94,278	-	-

18	Usha Spun pipes	2,28,323	-	-
19	Kamal Builder	31,16,83,440	-	-
20	New Glorious Infra Build Tech Pvt. Ltd.	2,79,15,980	-	-
21	Radhe RCC Products	49,14,776	-	-
22	Santosh bricks	3,43,592	-	-
23	M R constructions	2,27,41,980	-	-
24	Sakshi enterprises	3,50,005	-	-
TOTAL		**1,17,82,75,705**	**17,97,94,989**	**1,04,566**

On approval of this Resolution Plan by Hon'ble Adjudicating Authority and release of committed payment by Resolution Applicant, all the cases/suits, if any, filed by claimants under this category (required to / eligible to file claim under this category in terms of provisions of IBC) against the corporate debtor on account of their dues shall stand settled without any further action and such person shall not have any other legal remedy and shall be made payment as envisaged under this Resolution Plan.

On approval of this resolution plan by Hon'ble Adjudicating Authority claimants under this clause whose claims have been admitted and payment to whom has been proposed under this Resolution Plan, if there are any, shall be paid an amount as proposed in this Plan by the Resolution Applicant. Proof of release of such payment will be treated as proof of full and final settlement of dues towards such creditor and the balance amount of dues towards such creditors shall stand extinguished and shall be written off in the books of account of Corporate Debtor.

On approval of this resolution plan by Hon'ble Adjudicating Authority and release of committed payment by Resolution Applicant, Creditors who (in terms of provisions of IBC) are required to / eligible to file claims under this category on account of any kind of liability which could arise towards such creditor which is due or contingent, asserted or unasserted, crystalized or uncrystallised, known or unknown, secured or unsecured, disputed or undisputed, in relation to the period up to the Insolvency Commencement Date and have not filed the claim with the Resolution Professional OR whose claim has been rejected by the Resolution Professional, if there are any, dues towards such creditor if reflected / not reflected as due / contingent in the books of account / annual accounts / any other document

of the Corporate Debtor shall stand extinguished permanently without any liability on the Corporate Debtor / Resolution Applicant and shall be written off in the books of account / annual accounts of the Corporate Debtor. In case any such creditor has initiated any legal action by filing a suit / invoking arbitration etc., such suit / arbitration etc. shall become redundant and shall cease to have its legal force and will be closed by the concerned authority without any liability on the Resolution Applicant / Corporate Debtor.

6.6 OTHER CREDITORS (FORM F)

As per Information Memorandum / the List of Creditors as provided in IM / as updated by the RP subsequent thereto, creditors in this category have NOT submitted claims (in case RP has not included name of any creditor, who has filed the claim and whose claim has been rejected by the RP in full, in the list of Creditors in this category, such creditors will also be governed by the terms of this Resolution Plan).

Sr No	Name of Creditor	Amount Claimed (INR)	Amount Admitted (INR)	Amount Proposed to be paid as per Plan (INR)
- NIL -				

6.7 OTHER RELEVANT LIABILITIES AS PER INFORMATION MEMORANDUM

As per Information Memorandum, attachments have been mentioned in respect of liabilities in respect of which claims have been received in some cases and in other cases, RP has written letter to them for filing their claim. In respect of claim filed and admitted / under verification, proposal has already made in this resolution plan. In case of admission of any further claims by the RP, these claims will receive proportionate amount out of proposed amount in their categories in this resolution plan and the proposed payments of other creditors in the respective categories shall be reduced proportionally.

6.8 DEBT DUE FROM OR TO THE CORPORATE DEBTOR WITH RESPECT TO RELATED PARTIES:

As per the Information Memorandum, prepared on the basis of the audited balance sheet as at 31.03.2024, there are no unsecured loans from the directors of the Corporate Debtor. Further, no claims from directors or other related parties have been received or admitted by the Resolution Professional. Since the related party debts are nil, no payments have been proposed in respect of such debts, and accordingly, any such claims, if any, shall stand extinguished upon approval of the Resolution Plan.

6.9 PROPOSAL FOR EXISTING SHAREHOLDERS

Shareholders holding more than 1% shares as on 31.03.2024, as provided by corporate debtor are as under. Further, the face value of each share is Rs. 10/-.

Sr. No.	Name of the Shareholder	No. of Shares as on 31.03.2024
1	HIMANSHU GUPTA	65,87,465
2	JAISHREE GUPTA	3,04,439
3	KAVISH GUPTA	60,06,009
Total		1,28,97,913

Note: Based on Information Memorandum.

In accordance with the provisions of the Insolvency and Bankruptcy Code, 2016, and considering that the liquidation value attributable to the equity shareholders of the Corporate Debtor is **nil**, the Resolution Applicant proposes **no payment** to the existing shareholders.

Upon approval of the Resolution Plan by the Hon'ble National Company Law Tribunal under **Section 31 of the IBC, 2016**, the existing share capital of the Corporate Debtor shall stand **extinguished / cancelled / diluted**, as may be applicable, without any consideration to the present shareholders. The shareholders shall not have any further rights, claims, or entitlements in respect of their existing shareholding, except as expressly provided under this Resolution Plan.

6.10 PROPOSAL FOR CAPITAL RESTRUCTURING

i. It is clarified that the approval of the Hon'ble NCLT and the CoC shall

shall be necessary from the Creditors)/ shareholders/ members/ board of directors of the Corporate Debtor or any other Person / Governmental Authority in relation to these actions under any agreement, the constitution documents of the Corporate Debtor or under Companies Act, 2013. The Resolution Applicant will comply with all the procedural requirements wherever applicable.

ii. Subsequent to issue of share capital as mentioned above and with effect from NCLT Order Date, the pre-CIRP issued equity share capital of the Corporate Debtor as held by its shareholders shall be:
   a. extinguished and cancelled in their entirety without payment of any consideration to any shareholders;
   b. without requirement of writing of the words "and reduced" in the corporate name and style of Corporate Debtor.
   c. The Authorized Share Capital of the Corporate Debtor shall remain the same and shall not be considered reduced, extinguished or cancelled.

iii. Extinguishment of shares of Corporate Debtor may be done through capital reduction or selective capital reduction without requiring any separate shareholder's or Creditor's approval in accordance with the IBC. Accordingly, there is no outflow of/pay-out of funds from the Corporate Debtor and hence the interests of Creditors are not adversely affected.

iv. It is clarified for the avoidance of doubt that any changes made in the constitutional documents of the Corporate Debtor (i.e., the memorandum of association or articles of association of the Corporate Debtor) for the implementation of this Resolution Plan will bind the Corporate Debtor and all its stakeholders including Resolution Applicant and no further approval or consent shall be required from any other Person/Governmental Authority in relation to any such action(s).

v. Upon implementation of this step, the share certificates or shares issued in the dematerialized form (if any), in respect of the cancelled equity share capital of the Corporate Debtor held by their respective holders shall also be deemed to have been cancelled or extinguished.

vi. Upon the cancellation of the share capital of the Corporate Debtor as

contemplated above, the amount of reduction in the equity share capital of the Corporate Debtor shall be credited to the capital reserve of the Corporate Debtor.

vii. The approval of this Resolution Plan by the NCLT shall be deemed to have waived all the procedural requirements in terms of Section 66 of Companies Act and the NCLT (Procedure for Reduction of Share Capital), Rules 2016 and other Applicable Laws.

viii. **Issuance and Allotment of Shares – Deemed Approval**

The Order of the Hon'ble National Company Law Tribunal approving this Resolution Plan under Section 31 of the Insolvency and Bankruptcy Code, 2016, shall be deemed to constitute full, final, unconditional, and comprehensive approval for the issuance and allotment of equity shares to the Resolution Applicant (or its nominee(s)) in the manner contemplated under this Resolution Plan.

Accordingly, the issuance and allotment of such shares shall not require compliance with the procedural requirements prescribed under the Companies Act, 2013, or any rules, regulations, circulars, or guidelines issued thereunder relating to preferential allotment, including but not limited to:

- Section 42 and Section 62 of the Companies Act, 2013;
- Requirement of opening a separate bank account;
- Passing of shareholders' resolutions or board resolutions for preferential allotment;
- Any other procedural or conditional compliances ordinarily applicable for such issuance.

It is expressly clarified that, in terms of the overriding effect of Section 238 of the IBC, 2016, and the deemed approval of shareholders under the IBC, all such requirements shall stand dispensed with.

However, to the extent required for record and regulatory purposes, the Corporate Debtor and/or the Resolution Applicant shall make necessary filings with the Ministry of Corporate Affairs / Registrar of Companies, including filing of applicable e-forms, towards recording the issuance and allotment of such shares pursuant to the approval of this Resolution Plan.

ix. The structure proposed above may be altered by the Resolution Applicant from time to time at its discretion but without altering the amounts receivable by any stakeholder of the Corporate Debtor or the timeline proposed under the Resolution Plan with the prior consent of the CoC/Secured Financial Creditor representatives in the Monitoring Committee, as the case may be, and such alteration may include but not be limited to:

a. Identifying such other source of funds for infusing the Equity Infusion including by way of borrowings or equity infusion from any Person into the Resolution Applicant or the Corporate Debtor (provided each such Person is eligible under Section 29A of the Code to be a resolution applicant);

b. Removal of the Old Directors & Suspension of the existing Board of Directors of the Corporate Debtor.

c. Induction of New Directors and formation of New Board of the Corporate Debtor in such manner as conducive for the implementation of the Resolution Plan and commencement of business.

d. Tie-up, onboarding, partnering, collaboration with Equity Partners, Investors etc. for planning and expansion of business in the Corporate Debtor.

x. Any such alteration or modification to the acquisition structure as contemplated above shall not require any further actions, deed or notice and shall have the same binding effect as the Resolution Plan.

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6.11 EXTINGUISHMENT OF LIABILITIES DUE TO PAST ACTIONS

All liabilities whether covered or not shall stand extinguished upon the approval of the resolution plan by the Hon'ble NCLT and the payment of entire amount as contemplated in the resolution plan.

Resolution Applicant has worked out viability of the Resolution Plan based on known liabilities disclosed by the Resolution Professional in Information Memorandum. Any unknown liability has not been considered while working out the viability of the Plan, as such said liabilities will not be considered by the Resolution Applicant in any way.

There is possibility that some assets and liabilities may not be listed and might have been omitted while making accounts or Information Memorandum. All such assets including Arbitration proceedings whether all are mentioned explicitly or not in this Resolution Plan / Accounts of Corporate Debtor / unknown will continue to be assets of Corporate Debtor and Resolution Applicant will have right on all such assets including Arbitration proceedings, if any.

The company will file all government returns and applicable filings from the date of takeover of Corporate Debtor. Such departments will have no right to recover any such past taxes or statutory dues or demands of Government or Semi Government or Local Authorities OR dues / penalties on account of delayed filings from the Corporate Debtor / Resolution Applicant. Any pending export obligation in cases of pending export obligations not fulfilled shall stand extinguished. Any and all Income-Tax Demands and TDS liabilities along with any penalties and interest thereon shall stand extinguished. All the demands raised in any form including any 'charges, levy, duty, interest, penalties, etc. by various authorities / government departments / private service providers such as Income Tax, Tribunals, Courts, Sales tax/ Goods and Service Tax authorities, Excise and Custom Department, Electricity Department, Water Department, Pollution Control Board and by any other authority whether pending /quantified/adjudicated ordered by any or all the courts of India or not in court

as on date shall stand extinguished unconditionally in totality.

Upon approval of this Resolution Plan by the Hon'ble National Company Law Tribunal under Section 31 of the Insolvency and Bankruptcy Code, 2016, all claims, demands, liabilities, obligations, proceedings, litigations, suits, arbitrations, investigations, appeals, or actions of any nature whatsoever, whether civil, criminal, regulatory, statutory, quasi-judicial, or administrative, pending before any court, tribunal, authority, forum, or arbitrator across India, in relation to or arising out of any period prior to the Insolvency Commencement Date, shall stand extinguished, settled, and permanently closed, to the extent such claims or proceedings give rise to any monetary liability against the Corporate Debtor.

Accordingly, all penalties, interest, fines, charges, damages, compounding fees, additional levies, or any other monetary impositions, whether crystallised or uncrystallised, contingent or otherwise, relating to any period prior to the Insolvency Commencement Date, shall stand withdrawn, waived, and abated, without any further act, deed, or requirement.

It is clarified that:

- No authority shall be entitled to initiate or continue any proceeding for recovery of such extinguished claims; and
- Only such claims or liabilities as are expressly provided for under this Resolution Plan shall survive, and no person shall be entitled to claim any amount in excess thereof.

This clause shall be binding on all stakeholders by virtue of Section 31(1) of the IBC, 2016, read with the overriding effect provided under Section 238 of the IBC, 2016, as interpreted by the Hon'ble Supreme Court of India.

As per the Information Memorandum and other information supplied to us by the Resolution Professional, no claim has been filed against any contingent liability or disputed liability. Whatever claims have been filed, are dealt with in the Resolution Plan. The Corporate Debtor will not be liable to pay any other

claim which may be filed in future or which may occur or fructify contingent to any event.

Any contingent liability disputed or otherwise, reflected in the balance sheet or not, submitted by the Resolution Professional or not, shall stand extinguished and there shall be no liability arising out of such contingent liabilities at any time in the future.

Subject to section 32A of the code, all pending proceedings and suits filed against the Corporate Debtor with any authorities, arbitrator, tribunals, and courts all over India shall become infructuous and stand withdrawn or shall abate immediately on approval of the Resolution Plan by the Adjudicating Authority.

Any liability arising with Companies Act 2013/ Companies Act 1956/FEMA Regulations/Labor Laws for the period till the commencement of CIRP date shall stand extinguished.

All the demands, penalties, charges, fees, etc. arising out of non-compliance of the requirements, if any, of FEMA Regulations, Rules, Circulars, Notifications, etc. shall stand extinguished.

All demands, claims, penalties, damages, interest, charges, fees, or any other amounts of whatsoever nature, whether crystallised or uncrystallised, contingent or otherwise, arising out of or relating to any alleged non-compliance with, or non-payment of dues under, any labour and employment laws, including but not limited to the Employees' State Insurance Act, 1948; Employees' Provident Funds and Miscellaneous Provisions Act, 1952; Payment of Bonus Act, 1965; Contract Labour (Regulation and Abolition) Act, 1970; Minimum Wages Act, 1948; Equal Remuneration Act, 1976; Factories Act, 1948; Payment of Gratuity Act, 1972, or any other similar or allied legislation, to the extent relating to the period prior to the Insolvency Commencement Date, shall, upon approval of this Resolution Plan by the Hon'ble National Company Law Tribunal under Section 31 of the Insolvency and Bankruptcy Code, 2016, stand extinguished, settled, and irrevocably waived, and all pending or threatened proceedings, litigations,

inquiries, or actions before any court, tribunal, authority, or forum in relation thereto, insofar as they give rise to any monetary liability, shall stand withdrawn and abated, save and except to the extent expressly provided for in this Resolution Plan, which shall be binding on all stakeholders by virtue of Sections 31 and 238 of the IBC, 2016.

Liability due to pending filing of the financials and other documents as per The Companies Act, 1956 and The Companies Act, 2013 and any other sections, rules, regulations, circulars, provisions introduced in The Companies Act till the date of acceptance of this Resolution Plan by the Adjudicating Authority, with the Registrar of Companies shall stand extinguished.

Any investigations/ prosecution initiated by any agency on the corporate debtor shall stand extinguished.

6.12 ONGOING LITIGATION MATTERS

Treatment of amounts claimed under Ongoing Litigation Matters

Subject to section 32A of the code All Claims arising out of inquiries, investigations, notices, causes of action, suits, claims, disputes, litigation, arbitration, awards, decrees, order for execution of decree or other judicial, regulatory or administrative proceedings against, the Company or the affairs of the Company, pending or threatened, and the proceedings under Section 138 of the Negotiable Instruments Act, 1881, the Operational Creditor Claims and the Tax related Claims or liabilities in relation to any period prior to the insolvency commencement date or liability of any other nature not specified herein relating to the activities of the Corporate Debtor as on insolvency commencement date shall stand extinguished without any payment to them. All the cases to be treated as dispose of and the same shall be Binding to all the stakeholders.

6.13 CIVIL AND CRIMINAL CASES

Subject to section 32A of the code There might have some criminal/civil cases going on Corporate Debtor which may not have been in the knowledge of Resolution Professional / Resolution Applicant. On approval of this Resolution Plan by Hon'ble Adjudicating Authority and release of committed payment by Resolution Applicant, all criminal, civil or any other proceedings by whatsoever nature, against the Corporate Debtor shall be considered having ceased without any payment and outcome of any such proceedings will have no liability on Resolution Applicant/ Corporate Debtor. No proceedings shall be continued against the Corporate Debtor or Resolution Applicant.

Payment to creditors as envisage under this Resolution Plan under all nature of cases filed by creditors against the Corporate Debtor, shall stand withdrawn upon the payment as contemplated in the resolution plan.

Subject to section 32A of the code All the ongoing cases against the Corporate Debtor including but not limited to shall be considered as settled without any payment. All investigations against the Corporate Debtor by any agency shall be stopped and cases to proceed any further without any liability on Corporate Debtor/ Resolution Applicant and no action shall be initiated against the Corporate Debtor / Resolution Applicant. All the ongoing arbitration proceedings against the Corporate debtor known or unknown, or award, decree or execution of such decree as passed, such shall be considered as withdrawn.

6.14 FINANCIAL PROPOSAL SUMMARY:

		As per IM & other communications		
Sr. No	**Name of Creditor**	**Amount Claimed (INR)**	**Amount Admitted (INR)**	**Amount Proposed to be paid from Own funds (INR)**
1	**CIRP Cost**	-	-	50,00,000
2	**Secured Financial Creditors**	8,36,82,56,090	8,09,58,85,737	58,68,71,100
3	**Unsecured Financial Creditors**	46,40,85,196	46,40,85,196	42,18,900
4	**Operational Creditors**			
A	Workmen & Employee	72,55,445	3,83,136	3,83,136
B	**Govt Dues**			
	Other than EPF & ESIC Dues	13,98,12,493	5,48,59,323	1,00,000
	EPF Dues	1,89,624	18,664	18,664
	ESIC Dues	8,408	3,634	3,634
C	**Operational Creditors (other than workmen, Employees and Govt Dues)**	1,17,82,75,705	17,97,94,989	1,04,566
5	**Other Creditors**	-	-	-
	TOTAL	**10,15,78,82,961**	**8,79,50,30,679**	**59,67,00,000**
NPV of Plan Value				**57,85,78,680**
Reserve for Contingent claims				**25,00,000**
Grand Total				**59,92,00,000**
Protection and Continuity of Uninvoked Bank Guarantees				**Amount as per RFRP/VDR**

The Resolution Applicant (RA), under the Resolution Plan submitted pursuant to CIRP under the Insolvency and Bankruptcy Code, 2016, has proposed Rs. 59,67,00,000/- towards resolution of the Corporate Debtor. The Resolution Applicant ("RA") shall have the right, but not the obligation, to prepay any or all of the outstanding future installments under the Resolution Plan, without any prepayment penalty, subject to compliance with applicable laws and the terms of this Resolution Plan. However, in the event the RA pays the entire amount within 60 days from the Effective Date, a discount of 12% shall be allowed by the CoC.-In addition, the RA has undertaken to provide protection of the Uninvoked Bank Guarantees as detailed

in Para (iii) below.

Notes:

i). In respect of the amounts payable to the Financial Creditors, the Resolution Applicant has duly considered the claims admitted in the CIRP and proposes to pay an aggregate amount of ₹59,10,90,000 to the Financial Creditors. The proposed consideration comprises (i) a sum of ₹ 59,10,90,000 towards all the assets of the Corporate Debtor save and except arbitration proceeds to be funded through monetisation of fixed assets and/or borrowings from banks /financial institutions, and;

ii). **Arbitration Proceeds:** In addition to above, any amounts realized, recovered, received, or otherwise made available pursuant to the arbitration proceedings, including any settlements, awards, decrees, or related realizations ("Arbitration Proceeds"), shall be dealt with in the following manner and strictly in accordance with the terms of this Resolution Plan:

(a) All costs, expenses, legal fees, professional fees, taxes, duties, charges and other incidental expenditures incurred or payable in connection with the initiation, conduct, prosecution, defence, enforcement, recovery or realization of the Arbitration Proceeds shall be solely borne and funded by the Successful Resolution Applicant ("SRA").

(b) Subject to Clause (c) below, any Arbitration Proceeds actually received and realized shall, after deduction of applicable taxes and statutory levies, be distributed between the SRA and the Assenting Unrelated Financial Creditors on an actual receipt basis in the following ratio:

(i) Thirty percent (30%) of the Arbitration Proceeds net of taxes shall be distributed to the Assenting Unrelated Financial Creditors; and

(ii) Seventy percent (70%) of the Arbitration Proceeds shall accrue to and be retained by the Successful Resolution Applicant (SRA).

(c) Notwithstanding anything contained herein, the entitlement of the Assenting Unrelated Financial Creditors to receive their share of the Arbitration Proceeds shall arise only upon the return, discharge, release, cancellation, expiry or extinguishment of any bank guarantee furnished by or on behalf of

the financier funding the arbitration proceedings; or receipt of a written confirmation from such financier confirming that all obligations, liabilities and claims in relation to such funding arrangement and/or bank guarantee stand fully satisfied and discharged.

(d) Until the occurrence of the events specified in Clause (c) above, the Assenting Unrelated Financial Creditors shall not have any present or accrued right to claim, demand or receive any portion of the Arbitration Proceeds.

(e) The Resolution Applicant acknowledges and represents that it possesses substantial experience and expertise in pursuing, managing, enforcing, and realizing arbitration claims, litigation receivables, and contingent recoveries. Accordingly, the Resolution Applicant shall use commercially reasonable efforts to diligently pursue the arbitration proceedings and maximize recoveries therefrom, subject to applicable law, judicial discretion, arbitral determinations, and enforcement outcomes.

(f) To ensure transparency, accountability, and effective monitoring of the arbitration proceedings and related recoveries, an independent qualified professional shall be appointed by the Successful Resolution Applicant with the prior consent of the Assenting Unrelated Financial Creditors. The remuneration payable to such professional shall not exceed ₹50,000 (Rupees Fifty Thousand only) per annum, payable at the rate of ₹12,500 (Rupees Twelve Thousand Five Hundred only) per quarter upon submission of the quarterly progress report. Such remuneration shall be borne separately and shall not form part of the costs, expenses, or deductions contemplated under Clause (a) above.

(g) The independent professional shall monitor the progress of the arbitration proceedings and shall submit a detailed quarterly progress report to the Successful Resolution Applicant and the Assenting Unrelated Financial Creditors, outlining the status of proceedings, recoveries made, enforcement actions undertaken, expected timelines, and such other material developments as may be relevant.

(h) For the avoidance of doubt, neither the Successful Resolution Applicant nor the Assenting Unrelated Financial Creditors shall have any guaranteed

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entitlement to any specific recovery amount. All distributions contemplated under this Clause shall be subject to actual realization of the Arbitration Proceeds and shall be governed by the provisions of this Resolution Plan.

(i) It is further clarified that any amounts receivable pursuant to pending arbitration proceedings shall be realized and distributed on a receipt basis as and when actually received in the manner as prescribed in the resolution plan and shall not constitute a condition precedent for implementation, completion, or closure of the Resolution Plan.

(j) Accordingly, the implementation and completion of the Resolution Plan shall not be deferred, delayed, suspended, or postponed on account of the pendency, adjudication, recovery, realization, or receipt of any arbitration proceeds. Upon payment of the aforesaid Resolution Plan amount and contingent claim amount as specified herein, the Resolution Plan shall stand fully implemented and satisfied with effect from the Effective Date, and all obligations of the Successful Resolution Applicant in relation to implementation of the Resolution Plan shall be deemed to have been duly discharged, except for such obligations expressly stated to survive implementation under the Resolution Plan.

(k) The Resolution Applicant has substantial experience in handling, pursuing, and realising arbitration and litigation-related receivables and is confident of effectively pursuing the pending arbitration proceeds across various forums. This experience provides reasonable assurance regarding diligent follow-up, enforcement, and maximisation of value from such proceeds, subject to applicable laws and judicial outcomes.

(l) The aforesaid amounts shall be distributed to the Assenting Unrelated Financial Creditors in proportion to their respective admitted claims. The amounts payable to the Assenting Unrelated Financial Creditors under this Resolution Plan shall be paid in full, without any adjustment, appropriation or reduction on account of the Corporate Insolvency Resolution Process (CIRP) Cost or any other liability arising pursuant to any order or direction of the Hon'ble Adjudicating Authority. Any additional CIRP Cost or other liability, if any, shall be borne and paid separately by the Successful Resolution

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Applicant. The distribution shall be effected strictly in accordance with the provisions of the Insolvency and Bankruptcy Code, 2016 and the CIRP Regulations.

iii). ***Protection and Continuity of Uninvoked Bank Guarantees:*** *As a key value proposition under this Resolution Plan, the Resolution Applicant expressly commits to ensuring continuity, protection, and orderly management of the existing bank guarantees aggregating to amount as per RFRP/VDR, in the manner set out below:*

a) *In respect of all bank guarantees that are valid and subsisting as on the Effective Date ("Uninvoked Bank Guarantees"), the Resolution Applicant shall use its best commercial efforts to prevent any further invocation of such guarantees after the Effective Date, including by ensuring timely compliance with the underlying contractual obligations wherever commercially feasible.*

b) *From the date of approval of this Resolution Plan by the Committee of Creditors ("CoC Approval Date") until the Effective Date, the Resolution Applicant shall extend protection equivalent to 50% of the aggregate value of the Uninvoked Bank Guarantees. Accordingly, in the event any such bank guarantee is invoked during this period, the Resolution Applicant shall reimburse 50% of the amount so invoked, subject to the terms of this Resolution Plan.*

c) *From the Effective Date onwards, the Resolution Applicant shall provide 100% protection in respect of the Uninvoked Bank Guarantees. In the event of any invocation of such bank guarantees on or after the Effective Date, the Resolution Applicant shall reimburse 100% of the amount paid by the concerned bank(s) and/or financial institution(s) pursuant to such invocation.*

d) *Any reimbursement payable under Clauses (b) and (c) above shall be made within 89 (Eighty-Nine) days from the Effective Date, together with interest at the rate of 8% (Eight Percent) per annum, calculated from the date on which the concerned bank(s) and/or financial institution(s) make payment under the invoked bank guarantee until the date of reimbursement, subject to applicable law and the terms of this Resolution Plan.*

e) *This commitment demonstrates the Resolution Applicant's intent to preserve business credibility, maintain banking relationships, and support uninterrupted operations of the Corporate Debtor during the post-approval implementation*

phase.

f) For abundant clarity, the above undertaking shall not be construed as an assumption of liability for any invocation arising from events or defaults occurring prior to the Effective Date, except to the limited extent of the protection expressly provided under Clause (b) from the CoC Approval Date.

iv). In respect of Operation Creditors (EPF Dues), the applicant proposes to pay in full the amount payable against contribution deducted, employer contribution as well as interest till date and no penalty / damages will be paid. The breakup of amount due in respect of amount payable in respect of EPF has been provided by RP. The Applicant proposed to make payment against EPF dues amounting to Rs 18,664/- (As admitted by the RP) as mentioned in the IM. In case there is any increase / decrease in the amount payable against EPF after verification of claim by the RA, such amount shall be paid in full.

v). In respect of Operation Creditors (ESIC Dues), the applicant proposes to pay in full the amount payable against contribution deducted, employer contribution as well as interest till date and no penalty / damages will be paid. The breakup of amount due in respect of amount payable in respect of ESIC has been provided by RP. The Applicant proposed to make payment against ESIC dues amounting to Rs 3,634/- (As admitted by the RP) as mentioned in the IM. In case there is any increase / decrease in the amount payable against EPF after verification of claim by the RA, such amount shall be paid in full.

vi). In respect of Operation Creditors (Government Dues other than ESIC & EPF Dues), the applicant proposes to pay Rs. 1,00,000 for the amount admitted as mentioned in the IM. The aforesaid amount shall constitute the full and final payment towards this class of creditors under the Resolution Plan. Any increase in the admitted claims of such creditors shall not result in any corresponding increase in the Resolution Plan consideration payable by the Resolution Applicant. However, any additional amount that may become payable pursuant to verification, adjudication, reconciliation, or determination by a competent authority shall be dealt with in accordance with the provisions of Clause 6.14 note (ix) of this Resolution Plan and shall form part of, and be subject to, the contingency provision specified therein. For the avoidance of

doubt, the aggregate liability of the Resolution Applicant towards such additional claims shall not exceed the limits and provisions contemplated under Clause 6.14 note (ix), unless otherwise directed by the Hon'ble Adjudicating Authority.

vii). In respect of Operation Creditors (Workmen and Employees), the applicant proposes to pay a sum of Rs 3,83,136 to these creditors for the admitted amount as mentioned in the IM. The aforesaid amount shall constitute the full and final payment towards this class of creditors under the Resolution Plan. Any increase in the admitted claims of such creditors shall not result in any corresponding increase in the Resolution Plan consideration payable by the Resolution Applicant. However, any additional amount that may become payable pursuant to verification, adjudication, reconciliation, or determination by a competent authority shall be dealt with in accordance with the provisions of Clause 6.14 note (ix) of this Resolution Plan and shall form part of, and be subject to, the contingency provision specified therein. For the avoidance of doubt, the aggregate liability of the Resolution Applicant towards such additional claims shall not exceed the limits and provisions contemplated under Clause 6.14 note (ix), unless otherwise directed by the Hon'ble Adjudicating Authority.

viii). In respect of Operational Creditors (other than Workmen, Employees and Statutory Authorities), the Resolution Applicant proposes to pay an aggregate amount of ₹ 1,04,566 against the claims admitted or to be admitted in accordance with the provisions of the Insolvency and Bankruptcy Code, 2016. The aforesaid amount shall constitute the full and final payment towards this class of creditors under the Resolution Plan. Any increase in the admitted claims of such creditors shall not result in any corresponding increase in the Resolution Plan consideration payable by the Resolution Applicant. However, any additional amount that may become payable pursuant to verification, adjudication, reconciliation, or determination by a competent authority shall be dealt with in accordance with the provisions of Clause 6.14 note (ix) of this Resolution Plan and shall form part of, and be subject to, the contingency provision specified therein. For the avoidance of doubt, the aggregate liability of the Resolution Applicant towards such additional claims shall not exceed the limits and provisions contemplated under Clause 6.14 note (ix), unless otherwise directed by the Hon'ble Adjudicating Authority.

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ix).Payment Plan

Payment	Total	CIRP Cost, ESIC, EPF, Employees, others	Financial Creditors	% to Financial Creditors
Upfront Cash payment within 60 days	42,75,00,000	*56,10,000	42,18,90,000	71.37%
Within 360 days	16,92,00,000	-	16,92,00,000	28.63%
Total	**59,67,00,000**	**56,10,000**	****59,10,90,000**	**100.00%**
Performance Bank Guarantee	As per RFRP		Within Stipulated working days from receipt of LOI from COC	

* The amount of ₹50,00,000 specified above is an estimated provision towards the Corporate Insolvency Resolution Process (CIRP) Cost. The Successful Resolution Applicant shall pay the actual CIRP Cost outstanding and remaining unpaid as on the Effective Date, as verified by the Resolution Professional and approved by the Hon'ble Adjudicating Authority, wherever applicable. If the actual CIRP Cost is lower than the estimated provision, the liability of the Successful Resolution Applicant shall be restricted to such actual CIRP Cost. Conversely, if the actual CIRP Cost exceeds the estimated provision of ₹50,00,000, the Successful Resolution Applicant shall pay such excess amount in full on an actual basis. It is clarified that the estimated provision of ₹50,00,000 is indicative in nature and shall neither constitute a minimum payment obligation nor operate as a cap on the liability of the Successful Resolution Applicant towards payment of the actual CIRP Cost.

** The amount proposed to be paid to the Financial Creditors under this Resolution Plan shall be paid in full, in accordance with the terms of this Resolution Plan. Any additional liability arising pursuant to any order or direction of the Hon'ble Adjudicating Authority shall not be adjusted, appropriated or deducted from the amounts payable to the Financial Creditors under this Resolution Plan. Such additional liability, if any, shall be borne and paid separately by the Successful Resolution Applicant.

x). Any amount that may become payable to any class of creditors **other than Financial Creditors**, in excess of their presently admitted dues, pursuant to any statutory assessment, adjudication, verification, reconciliation, or determination by a competent authority, shall be paid in accordance with applicable law and the approved Resolution Plan. A dedicated provision of ₹25,00,000 (Rupees Twenty-Five Lakhs only) has been earmarked towards such contingent and uncrystallized claims. The aforesaid amount shall constitute the maximum allocation available under the Resolution Plan for satisfaction of such claims, unless otherwise directed by the Hon'ble Adjudicating Authority. Any claim exceeding the said provision shall stand dealt with in accordance with applicable law and the provisions of the approved Resolution Plan. For the avoidance of doubt, no such claim shall affect the validity, implementation, feasibility, or binding effect of this Resolution Plan.

Notwithstanding anything contained elsewhere in this Resolution Plan, it is hereby clarified that the Resolution Plan shall be deemed to have been fully implemented upon payment by the Successful Resolution Applicant of the total Resolution Plan consideration of Rs. 59,67,00,000 (Rupees Fifty-Nine Crore Sixty-Seven Lakh Only) as provided under the Resolution Plan, together with payment towards contingent claims up to an aggregate amount of Rs. 25,00,000 (Rupees Twenty-Five Lakh Only), if and to the extent such contingent claims crystallize and become payable in accordance with the terms of the Resolution Plan.

*The Resolution Applicant has submitted a Bid Bond in the form of Bank Guarantee bearing No. 594GT02260410007 dated 10 February 2026, issued by HDFC Bank Limited, D-23, Defence Colony, New Delhi – 110024, valid up to 09 August 2026. The validity of the aforesaid Bank Guarantee shall be extended, if required, in accordance with the terms of the Information Memorandum and/or as may be directed by the Resolution Professional or the Committee of Creditors.

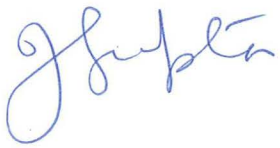
RA assures that terms provided are in compliance with RFRP along with Applicable Law including any change of such terms pursuant to discussions with the Resolution Professional or members of CoC of the Company and no deviation therefrom has been taken. The RA shall confirm the mode of payment or type of instrument of payment at a later time.

SECTION-7: SOURCE OF FUNDS

The Resolution Applicant confirms that the total financial outlay proposed under this Resolution Plan, including upfront payments, working capital infusion, and other implementation costs, shall be funded through legitimate and verifiable sources. The proposed investment shall be funded through monetisation of fixed assets for which she possesses necessary assets as per her CA's Net Worth certificate and/or borrowings from banks and/or financial institutions.

Further, the Resolution Applicant hereby confirms that, in the event of any proposed infusion of debt under the Resolution Plan, such debt shall be independently arranged by the Resolution Applicant or its identified financiers, without any obligation, commitment, or liability on the part of the members of the Committee of Creditors to provide, arrange, or facilitate such funds.

The Resolution Applicant further undertakes that all funds infused pursuant to this Resolution Plan shall be sourced in compliance with applicable laws, including but not limited to the Insolvency and Bankruptcy Code, 2016, the Prevention of Money Laundering Act, 2002, the Companies Act, 2013, and other regulatory requirements. Necessary documentary evidence, including proof of net worth, asset ownership, and financing arrangements, shall be provided to the Committee of Creditors.



SECTION-8: TERM, IMPLEMENTATION, MONITORING AND SUPERVISION OF RESOLUTION PLAN

8.1. Term of the Resolution Plan

This Resolution Plan shall become effective from the date of approval by the Hon'ble Adjudicating Authority under Section 31 of the Insolvency and Bankruptcy Code, 2016 ("Effective Date"). The implementation period of this Resolution Plan shall be one (1) year from the Effective Date or until its earlier completion, and it shall be deemed implemented upon fulfillment of the payment obligations specified herein.

The payment obligations proposed under this Plan shall be completed within 1 year from the Effective Date, unless otherwise specifically provided.

8.2. Implementation Schedule

Upon approval of this Resolution Plan by the Hon'ble Adjudicating Authority under Section 31 of the Insolvency and Bankruptcy Code, 2016, the Resolution Applicant shall take immediate steps to implement the Plan in a time-bound and structured manner. The implementation shall commence from the Effective Date and shall include infusion of committed funds, payment to stakeholders as per the approved distribution mechanism, reconstitution of the Board of Directors, revival of business operations, restoration of banking arrangements, and compliance with all statutory and regulatory requirements. The Resolution Applicant undertakes to ensure strict adherence to the implementation schedule and shall deploy necessary financial, managerial, and technical resources to revive the Corporate Debtor as a going concern. All actions shall be carried out under the supervision of the Monitoring Committee until completion of the obligations contemplated under this Resolution Plan.

The implementation of this Resolution Plan shall commence from the **Effective Date** and shall be completed in a phased manner in accordance with the timelines set out below. The implementation shall include furnishing of Performance Bank Guarantee, infusion of committed funds, payment to stakeholders in accordance

with the approved distribution mechanism, reconstitution of the Board of Directors, revival of business operations, restoration of banking arrangements, and completion of statutory and regulatory compliances.

Sr. No.	Activity / Milestone	Timeline from Effective Date	Amount (₹)	Allocation
1	Submission / validity of Performance Bank Guarantee	Within stipulated working days from receipt of LOI from CoC / as per RFRP	As per RFRP	Compliance Requirement
2	Payment of CIRP Costs, Financial Creditors, statutory dues including ESIC, EPF, employee dues and other dues forming part of first tranche	Upfront, within 60 days	₹42,75,00,000	71.64%
3	Change in Chairperson of Monitoring Committee	after release/payment of 70% of the total amount payable under the approved Resolution Plan by the Resolution Applicant		
4	Nomination of New Directors for the reconstitution of the Board of Directors	upon approval of the Resolution Plan by the Hon'ble Adjudicating Authority		
5	Reconstitution of Board of Directors	Upon payment of substantial upfront tranche / as per applicable law	On or before the transfer date	Governance Transition
6	Revival of operations, restart of business, employee deployment, vendor engagement, customer outreach	Commencing immediately after Effective Date and continuing during implementation period	—	Business Revival
7	Restoration / opening of banking arrangements, working capital tie-ups, statutory registrations, licenses and approvals	Parallel during implementation period	—	Operational Enablement
8	Payment of Financial Creditors, forming part of Second tranche	Within 360 days	₹16,92,00,000	28.36%
9	Transfer of all or part of the assets of the Corporate Debtor to one or more persons	On transfer date ('Transfer Date' shall mean the date on which Proposed Transaction is Completed and Corporate Debtor is handed over to Resolution Applicant, in accordance with the terms of the RFRP.)		

8.3. Management of the Company after NCLT approval date till Transfer Date and supervision of implementation of resolution plan during this period.

Immediately upon NCLT approval date, Monitoring Committee shall be constituted and Insolvency Professional shall convene meeting of the Monitoring Committee on receipt of the order of Hon'ble Adjudicating Authoring approving this Resolution Plan.

8.4. The Monitoring Committee shall be comprising of following members

i. Two representatives of the Secured Financial Creditors

ii. "Insolvency Professional" (hereinafter referred to as Insolvency Professional) as Chairman.

iii. Two Representatives of the Successful Resolution Applicant

8.5. The Resolution Applicant hereby agrees and confirms that, except as otherwise expressly provided in the Resolution Plan, all decisions of the Monitoring Committee shall be taken by way of a majority vote of all its members. The Resolution Applicant further undertakes to abide by and give effect to all such decisions validly taken by the Monitoring Committee in accordance with the terms of the approved Resolution Plan.

8.6. The Monitoring Committee, led by an Insolvency Professional, shall complete the formalities of filing the necessary forms with the ROC. The Monitoring Committee shall also handover the Bank Accounts of the Corporate Debtor or any other activity for effective handover of the Corporate Debtor. The Registrar of Companies shall accept the same on approval of the Resolution Plan by the Hon'ble Adjudicating Authority.

8.7. The Resolution Applicant hereby undertakes to propose the names of the persons to be appointed as Directors on the reconstituted Board of Directors of the Corporate Debtor upon approval of the Resolution Plan by the Hon'ble

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Adjudicating Authority. The detailed composition of the newly constituted Board, including the proposed Directors, shall be finalized and submitted by the Resolution Applicant during the implementation phase. Such persons shall be appointed as Directors of the Corporate Debtor on or after completion of the proposed transaction, being payment of the entire consideration as contemplated under this Resolution Plan, or on such earlier or later date as may be permitted under applicable law and considered necessary for effective implementation of the Resolution Plan. Until such reconstitution, the existing governance structure / Monitoring Committee / authorized persons, as applicable under the approved Resolution Plan, shall continue to manage the affairs of the Corporate Debtor in accordance with law.

8.8. The Monitoring Committee shall dissolve immediately on the completion of implementation of the Resolution Plan. It is further clarified that upon payment by the Resolution Applicant of 70% of the total Resolution Plan consideration, the existing Chairperson of the Monitoring Committee, shall stand replaced by a new Insolvency Professional / Chairperson to be nominated by the new management / Resolution Applicant, subject to consent of such professional and compliance with applicable law or directions of the Hon'ble Adjudicating Authority, if required. Upon full payment of the Resolution Plan consideration and substantial completion of all implementation obligations under the approved Resolution Plan, the Monitoring Committee shall stand automatically dissolved with immediate effect, unless its continuation is specifically required under any order of the Hon'ble Adjudicating Authority or mutually agreed by the stakeholders for limited residual matters.

8.9. Cost of implementation as approved by Monitoring Committee will be paid by Resolution Applicant. Resolution Professional acting as Chairman of the Monitoring Committee shall be mutually agreed upon between FC and Resolution Applicant.

8.10. In addition to this, we hereby clarify that the RA shall fix the fee as agreed with IP and be paid by RA.

8.11. Handover from Monitoring Committee to RA

Release of Settlement Amount by Resolution Applicant and handover of Corporate Debtor to Resolution Applicant on Transfer Date

On approval of this Resolution Plan by the Hon'ble Adjudicating Authority, the management of the Corporate Debtor will get transferred from RP to Monitoring Committee. On date as envisage under the Resolution Plan, Resolution Applicant will make payment of amount committed under plan in the bank account of Corporate Debtor which will remain under the control of Monitoring Committee. The said amount will be distributed by Monitoring Committee to various creditors simultaneous with fulfillment of their obligations as envisaged under the Resolution Plan. Monitoring committee shall handover all the assets of Corporate Debtor, records, original documents/records including but not limited to licenses, agreements, orders, legal documents, documents of land, case papers, orders etc. in physical / digital form to the Board of Directors nominated by the Resolution Applicant simultaneous with payment of settlement amount by RA on the Transfer Date.

8.12. Right to Access On the handover of management and control, subsequent to the approval of Resolution Plan by Hon'ble Adjudicating Authority, the Resolution Applicant shall have access to all the records/premises/factories/documents through Resolution Professional / Monitoring Committee to finalize the further line of action required for starting of the operations.

8.13. Avoidance Applications Filed by the Resolution Professional: In the event any application has been filed during the CIRP by the Resolution Professional under Sections 43, 45, 47, 50 and/or 66 of the Insolvency and Bankruptcy Code, 2016 ("Avoidance Applications"), the Resolution Applicant shall, upon approval of the Resolution Plan by the Hon'ble Adjudicating Authority, take necessary steps to continue, prosecute, defend, and pursue such Avoidance Applications in accordance with law.

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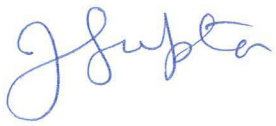
8.14. **Cost of Pursuing Avoidance Applications:** All costs, expenses, fees, and outgoings incurred in relation to the continuation, prosecution, or adjudication of such Avoidance Applications, including legal and professional costs, shall be borne and paid by the Resolution Applicant, unless otherwise directed by the Committee of Creditors or the Hon'ble Adjudicating Authority.

8.15. **Distribution of Benefits Arising from Avoidance Applications:** Any monetary recoveries, realizations, proceeds, reimbursements, restitutions, or other financial benefits arising pursuant to any order passed by the Hon'ble Adjudicating Authority in relation to such Avoidance Applications shall accrue solely for the benefit of the Financial Creditors, and shall be distributed in such manner as may be determined by the Committee of Creditors or in accordance with applicable law. Any non-monetary relief, including restoration of assets, cancellation of transactions, revesting of property, or other consequential reliefs granted by the Hon'ble Adjudicating Authority, shall be dealt with in the manner determined by the Committee of Creditors, consistent with the provisions of the Code and the approved Resolution Plan. Such amounts/benefits received and/or receivable shall not form a part of the Resolution Amount proposed to be paid by the Resolution Applicant under the Resolution Plan or be reduced from the payment to be made by the Resolution Applicant to the financial creditors.

8.16. **Mechanism for Pursuit of Avoidance Applications:** The specific manner, strategy, implementation framework, and monitoring mechanism for pursuing the Avoidance Applications shall be determined by the Committee of Creditors in consultation with the Resolution Professional and/or Monitoring Committee, as the case may be. The Resolution Applicant undertakes to extend full cooperation, execute necessary authorizations, and act in accordance with such decisions, while ensuring compliance with the Insolvency and Bankruptcy Code, 2016 and applicable law.



SECTION-9 MANDATORY CONTENTS OF THE RESOLUTION PLAN

The Resolution Plan has been prepared in accordance with the requirements of IBC, the CIRP Regulations and the RFRP.

i. Declaration under Section 29A of the Code:

The Resolution Applicant herein declares and undertakes that neither the Resolution Applicant, nor any of its related/connected persons is ineligible to submit a Resolution Plan in terms of Section 29A of the Code and has submitted the Resolution Plan along with and undertaking stating that the RA is eligible under Section 29A.

ii. Compliance with Section 30 of the Code:

a. **Section 30(2)(a)- Provision for payment of Insolvency Resolution Cost** – As informed by the Resolution Professional, the total estimated Insolvency Resolution Process Costs ("CIRP Costs"), including the fees payable to the Resolution Professional, expenses incurred during the Corporate Insolvency Resolution Process, and applicable regulatory fees pursuant to Circular No. IBBI/IP/56/2022 dated 24 November 2022 issued by the Insolvency and Bankruptcy Board of India, have been determined in accordance with the provisions of the Insolvency and Bankruptcy Code, 2016 read with the CIRP Regulations.

As on the date of submission of this Resolution Plan, no CIRP Costs are stated to be pending. However, in the event that any CIRP Costs remain outstanding and unpaid as on the Effective Date, the Successful Resolution Applicant undertakes to pay such actual CIRP Costs in full on the Effective Date, in priority over all other payments proposed under this Resolution Plan, in compliance with Section 30(2)(a) of the Code.

The amount of ₹50,00,000 provided under this Resolution Plan towards CIRP Costs is an estimated provision. If the actual CIRP Costs outstanding and remaining unpaid as on the Effective Date are lower than the estimated

provision, the liability of the Successful Resolution Applicant shall be restricted to such actual CIRP Costs. Conversely, if the actual CIRP Costs exceed the estimated provision, the Successful Resolution Applicant shall pay such excess amount in full on an actual basis. The estimated provision of ₹50,00,000 is indicative in nature and shall neither constitute a minimum payment obligation nor operate as a cap on the liability of the Successful Resolution Applicant towards payment of the actual CIRP Costs.

The CIRP Costs shall be paid in full within a period of sixty (60) days from the Effective Date or earlier, as may be directed by the Hon'ble Adjudicating Authority.

b. Section 30(2)(b)- Payment of Operational Creditors shall not be less than Liquidation Value payable to the Operational Creditors.:

As per the information received from the Resolution Professional, the admitted claims of Operational Creditors (statutory and government dues) are to the tune of Rs. 5,48,81,621/-. Operational Creditors (Employees and Workmen) is Rs. 3,83,136 and other Operational Creditors is Rs. 17,97,94,989.

Although the RAs are not informed about the Liquidation Value of the CD. but the RAs understand that the estimated liquidation value of the CD shall not be sufficient to repay the debt of even the Secured Creditors and therefore, the liquidation value applicable to Operational Creditors in terms of sub clauses (i) and (ii) of Section 30(2)(b) would be NIL

However, the Resolution Applicant proposes to pay all Provident Fund and Employees' State Insurance dues which fall under Section 36(4)(a)(iii) of the Insolvency and Bankruptcy Code, 2016. As per the Information Memorandum, such dues presently aggregate to ₹22,298/-, which shall be paid in full within 60 days from the Effective Date.

Notwithstanding anything else contained in this Resolution Plan, the Resolution Applicant confirms that the payment of debts of Operational

Creditors under the Resolution Plan shall not be less than -

(i) the amount to be paid to such creditors in the event of a liquidation of the corporate debtor under section 53; or

(ii) the amount that would have been paid to such creditors, if the amount to be distributed under the resolution plan had been distributed in accordance with the order of priority in sub-section (1) of section 53, whichever is higher.

Further, the payment to the operational creditors shall be paid in priority over financial creditors.

c. Section 30(2)(c)- Management of the affairs of the Corporate Debtor after approval of the Resolution Plan.

The Resolution Applicant hereby undertakes to propose the names of the persons to be appointed as Directors on the reconstituted Board of Directors of the Corporate Debtor upon approval of the Resolution Plan by the Hon'ble Adjudicating Authority. The detailed composition of the newly constituted Board, including the proposed Directors, shall be finalized and submitted by the Resolution Applicant during the implementation phase. Such persons shall be appointed as Directors of the Corporate Debtor on or after completion of the proposed transaction, being payment of the entire consideration as contemplated under this Resolution Plan, or on such earlier or later date as may be permitted under applicable law and considered necessary for effective implementation of the Resolution Plan. Until such reconstitution, the existing governance structure / Monitoring Committee / authorized persons, as applicable under the approved Resolution Plan, shall continue to manage the affairs of the Corporate Debtor in accordance with law.

d. Section 30(2)(d)- The Implementation and Supervision of the Resolution Plan

Post approval of Resolution Plan by Hon'ble Adjudicating Authority, the Monitoring Committee as constituted under this Resolution Plan shall supervise the implementation of this Resolution Plan. The Monitoring Committee shall ensure the effective implementation of this Resolution Plan after approval of the said plan by the Hon'ble Adjudicating Authority.

e. **Section 30(2)(e)- No contravention of any provisions of the law for the time being in force:**

The Resolution Applicant undertakes that none of the Chapters, Clauses or any part of this Resolution Plan contravenes any provisions of the law for the time being in force and the Resolution Applicant also undertakes to modify/amend or delete any provision/clause, if found in contravention to any provisions of the law for the time being in force, without affecting the validity or applicability of other Clauses of the Plan

f. **Declaration under Section 30(2)(f) of the Insolvency and Bankruptcy Code, 2016**: It is hereby declared that the Resolution Plan conforms to all such other requirements as specified by the Insolvency and Bankruptcy Board of India under the Insolvency and Bankruptcy Code, 2016, including applicable provisions of the CIRP Regulations, and all laws for the time being in force.

iii. **Compliance with respect of Regulation 36B (4A)** The payment of PERFORMANCE SECURITY shall be in accordance with the RFRP.

iv. **Compliance as per Regulation 37 of CIRP Regulations:**

In Compliance of Regulation 37 of CIRP Regulations, 2016, the Resolution Applicant undertakes that this resolution plan provides for maximization of the value of its assets, which may or may not include the following:

a. Transfer of all or part of the assets of the Corporate Debtor to one or more persons

The Resolution Plan contemplates the transfer of the assets of the Corporate

Debtor, in whole or in part, to the Resolution Applicant and/or any other person upon successful implementation of the Resolution Plan. Further, the Resolution Plan also envisages infusion of fresh capital, reconstitution of the management, and appointment of a new Board of Directors for revival of the Corporate Debtor and ensuring continuity of its business operations.

b. Sale of all or part of the assets whether subject to any security interest or not;

This Resolution Plan does not propose any sale of assets to any person.

`ba restructuring of the Corporate Debtor, by way of merger, amalgamation, and demerger;

This Resolution Plan does not propose any restructuring of the Corporate Debtor, by way of merger, amalgamation and demerge till full implementation of this Plan

c. the substantial acquisition of shares of the Corporate Debtor, or the merger or consolidation of the Corporate Debtor with one or more persons;

The Resolution Plan proposes for appointment of new Directors to the Corporate Debtor, extinguishment of existing equity capital and issuance of fresh equity shares

`ca. cancellation or delisting of any shares of the Corporate Debtor, if applicable;

Not applicable

d. satisfaction or modification of any security interest;

Payment has been proposed in respect of claims received and admitted. After payment all the security interest held shall be extinguished by the respective Lenders. The Resolution Plan proposes satisfaction of security interest in terms of Section 5.

e. curing or waiving of any breach of the terms of any debt due from the Corporate Debtor;

All breach of the terms of any debt due from the corporate debtor shall be cured or waived of on implementation of the resolution plan.

f. reduction in the amount payable to the creditors:

All creditors shall be paid as per the resolution plan being full and final amount. Any unpaid amount shall be written off automatically. The Plan provides for reduction in the amount payable to the Creditors in terms of Section 5 of the Plan.

g. extension of a maturity date or a change in interest rate or other terms of a debt due from the Corporate Debtor;

There shall be no extension on maturity date or interest rate or other terms of debt as all shall extinguish after implementation of the resolution plan.

h. amendment of the constitutional documents of the Corporate Debtor;

This Resolution Plan does not provide for any amendment of the constitutional documents of the Corporate Debtor till full implementation of the Resolution Plan. However, RA shall be at liberty to amend the Constitutional Documents as per business requirements.

i. Issuance of securities of the Corporate Debtor, for cash, property, securities, or in exchange for claims or interests, or other appropriate purpose.

RA shall not issue the securities of the corporate debtor, for cash, property, securities, or in exchange for claims or interests, or other appropriate purpose. Shares will be allotted only to the Resolution Applicant at face value as per the terms of the Resolution Plan.

j. change in portfolio of goods or services produced or rendered by the Corporate Debtor;

RA may or may not change in portfolio of goods or services produced or rendered by the corporate debtor

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k. change in technology used by the corporate debtor;

RA may or may not change the technology used by the corporate debtor.

l. obtaining necessary approvals from the Central and State Governments and other authorities:

RA shall obtain the necessary approvals from the Central and State Governments and other authorities.

m. sale of one or more assets of corporate debtor to one or more successful resolution applicants submitting resolution plans for such assets; and manner of dealing with remaining assets:

RA is not proposing any sale of one or more assets of the corporate debtor to one or more successful resolution applicants submitting resolution plans

The Resolution Applicant declares that this Resolution Plan provides for the measures, as necessary, for insolvency resolution of the Corporate Debtor for maximization of the value of its assets, including but not limited to the items mentioned above as applicable.

v. Compliance with Regulation 38

a. **Compliance with Regulation 38(1)(a):** The Resolution Applicant confirms that on approval of this Resolution Plan by the Adjudicating Authority, payment towards Operational Creditors shall be paid in priority over financial creditors, as elaborated in Chapter 6 of the Plan;

b. **Compliance with Reg. 38(1)(b)-** The Resolution Applicant confirms that on approval of this Resolution Plan by the Adjudicating Authority, the payment towards financial creditors, who have a right to vote under sub-section (2) of section 21 and did not vote in favor of the Resolution Plan, shall be paid in priority over financial creditors who voted in favor of the plan at Liquidation Value.

c. **Compliance with Reg. 38(1A)-** The Resolution Applicant undertakes and confirms that they have considered the interests of all stakeholders and has provided for payment/repayment/settlement of all stakeholders keeping in view the objective of the Company as a going concern, maximisation of value and adhering to the requirements set out under the Code.

d. **Compliance with Reg. 38(1B)-** The Resolution Applicant hereby confirms that neither the Resolution Applicant nor any of its related parties have ever failed to implement or contributed to the failure of implementation of any other Resolution Plan approved by the Adjudicating Authority at any time in the past.

e. **Compliance with Reg. 38(2)(a)-** The Resolution Plan provides for the term of the plan and its implementation schedule.

f. **Compliance with Reg. 38(2)(b)-** The Resolution Applicant hereby undertakes to propose the names of the persons to be appointed as Directors on the reconstituted Board of Directors of the Corporate Debtor upon approval of the Resolution Plan by the Hon'ble Adjudicating Authority. The detailed composition of the newly constituted Board, including the proposed Directors, shall be finalized and submitted by the Resolution Applicant during the implementation phase. Such persons shall be appointed as Directors of the Corporate Debtor on or after completion of the proposed transaction, being payment of the entire consideration as contemplated under this Resolution Plan, or on such earlier or later date as may be permitted under applicable law and considered necessary for effective implementation of the Resolution Plan. Until such reconstitution, the existing governance structure / Monitoring Committee / authorized persons, as applicable under the approved Resolution Plan, shall continue to manage the affairs of the Corporate Debtor in accordance with law.

g. **Compliance with Reg. 38(2)(c)-** This Resolution Plan provides for constitution of a Monitoring Committee for the implementation and supervision of the Resolution Plan after Effective Date

h. **Compliance with Reg. 38(2)(d)-** TheResolution Plan provides for the manner in which proceedings in respect of avoidance transactions, if any, under Chapter III or fraudulent or wrongful trading under Chapter VI of Part II of the Code, will be pursued after the approval of the resolution plan and the manner in which the proceeds, if any, from such proceedings shall be distributed

i. **Compliance with Regulation 38(3)(a):** Addressing the cause of default- The Resolution Plan has addressed the cause of default.

j. **Regulation 38(3)(b) -** Feasibility and viability of the Plan- The Resolution Applicant undertakes and declares that this Resolution Plan is feasible and viable and the Resolution Applicant has the financial capability and technical expertise in successfully implementing the Resolution Plan All payments envisaged under this Plan shall be made from and out of the funds to be infused by the Resolution Applicant.

k. **Regulation 38(3) (c)-** The Resolution Applicant has provided for the mechanism to monitor the progress and implementation of the Resolution Plan, under the supervision of Monitoring Committee

l. **Regulation 38(3)(d) -** Approvals required and the timeline for the same- After the Effective Date, in order to give effect to this Plan, the Corporate Debtor (under new management) shall apply for the necessary approvals/licenses, if any. from concerned authorities or agencies immediately. The Resolution Plan has provisions for approvals required and the timeline for the same; and

m. **Regulation 38(3)(e) -** Capability to implement the Resolution Plan- Resolution Applicant is fully aware about the present status of the Company and has the capability and funds for the implementation of this Plan. The requirement of additional staff will be ascertained/reviews from time to time and the same will be hired and deployed, as and when required.

vi. <u>Compliance with Regulation 39</u>

a. **Regulation 39(1)(c):** In compliance with Regulation 39(1)(c) of the CIRP Regulations, the Resolution Applicant hereby declares that all information and records provided in connection with, or forming part of, the Resolution Plan are true, correct, complete, and not misleading in any material respect. It is further acknowledged that discovery of any false information or record at any time shall render the Resolution Applicant ineligible to continue in the CIRP process, entail forfeiture of any refundable deposit, and attract such penal action as may be applicable under the Insolvency and Bankruptcy Code.

SECTION-10: RELIEFS AND CONCESSIONS AND DISPENSATION

The Resolution Applicant has, in the preceding paragraphs, comprehensively set out the reliefs, concessions, waivers and dispensations sought in respect of the admitted liabilities as recorded in the Information Memorandum. In view thereof, and to avoid repetition, the same are not reiterated herein.

The Resolution Applicant proposes to implement the Business Plan contained in this Resolution Plan with the objective of revival, rehabilitation and value maximisation of the Corporate Debtor as a going concern, in accordance with the objectives of the Insolvency and Bankruptcy Code, 2016. While the Resolution Plan is viable and implementable on a standalone basis, the successful, effective and timely revival of the Corporate Debtor would be substantially facilitated by the grant of the reliefs, concessions, waivers and dispensations set out herein and elsewhere in this Resolution Plan.

It is expressly clarified that this Resolution Plan is **not conditional upon** or contingent on the grant of the reliefs, concessions and waivers sought herein. However, the same are respectfully prayed for in order to ensure smooth implementation of the Resolution Plan, operational continuity, avoidance of future disputes, and maximisation of value for all stakeholders.

Accordingly, **without prejudice** to the terms of the Resolution Plan and subject to approval of this Resolution Plan by the Hon'ble National Company Law Tribunal under Section 31 of the Insolvency and Bankruptcy Code, 2016, the following reliefs, concessions, waivers and dispensations shall stand **approved, granted and deemed to have been waived** with effect from the Effective Date, to the extent permissible under applicable law;

10.1 With effect from the date of approval of this Resolution Plan by the Hon'ble National Company Law Tribunal ("**NCLT Approval Date**"), and pursuant to the order of the Hon'ble NCLT sanctioning this Resolution Plan under Section 31 of the Insolvency and Bankruptcy Code, 2016, **all Adverse Actions shall stand restrained and prohibited**, and no person or authority shall initiate,

continue, enforce or give effect to any Adverse Action against the Corporate Debtor, the Resolution Applicant or the Resolution Plan, **until the Effective Date**, except to the extent expressly permitted under this Resolution Plan or applicable law.

10.2 Given the limited time available for diligence conducted by the **Resolution Applicant** on the **Corporate Debtor ,** and since accuracy and completeness of the information disclosed in the **Information Memorandum** cannot be verified by the **Resolution Professional** or the **CoC,** all information and questions requested by the **Resolution Applicant** during the due diligence exercise but not accurately, adequately or completely provided and any inaccuracy in the information disclosed to the **Resolution Applicant** should not prejudice the **Resolution Applicant**, the **Corporate Debtor,** or the resolution and rehabilitation of the **Corporate Debtor** contemplated in this plan in any manner ; and

10.3 To ensure going concern status of the Corporate Debtor, all deeds, licenses, consents, licenses, approvals, rights, entitlements, benefits and privileges whether under law. contract, lease or license. granted in favor of the Corporate Debtor or to which the Corporate Debtor is entitled to, which have either expired or terminated any time before the Effective Date, shall be deemed to continue without disruption for the benefit of the Corporate Debtor until renewed by the relevant authorities as per the timelines provided in this Resolution Plan.

10.4 Local Electricity Discom, Local Municipal Corporation, local water supply agency to waive off all demands, penalties, taxes, dues, charges. levies, and Cess for any period prior to the **Plan Effective Date.** The Company or Applicant shall not be liable for the above under **Applicable Laws** for the period prior to the plan effective date.

10.5 On and from the **Plan Effective Date,** all accounts of the Company shall stand regularized and their asset classification shall be "Standard" for the purposes of all "Applicable Laws".

10.6 All government authorities, shall grant licenses / approvals / permissions /permits / NOCs in favour of the Resolution Applicant / Corporate Debtor, irrespective of whether the suspended management has failed to renew the said licenses / approvals / permissions / permits / NOCs and / or failed to pay the requisite fees / penalty / fine etc. prior to the Effective Date.

10.7 All Government Authorities (including but not limited to CBDT, ROC, CBIC, VAT, Excise, GST, ESI, EPF, MCA, SEBI etc.) to waive off all penalties, taxes, dues, charges, levies and Cess of the Corporate Debtor and Non-Compliance prior to the plan effective date.

10.8 Upon approval of this Resolution Plan by the Hon'ble Adjudicating Authority under Section 31 of the Insolvency and Bankruptcy Code, 2016, all Income-tax demands, liabilities, penalties, interest, fines, and other statutory dues, whether existing, contingent, disputed, unassessed, or unclaimed, pertaining to any period prior to the Effective Date, and to the extent not expressly provided for in this Resolution Plan, shall stand permanently extinguished, and no claim in respect thereof shall survive against the Corporate Debtor or the Resolution Applicant. It is further clarified that any Income-tax claims not filed or not admitted during the CIRP, or arising out of assessments, reassessments, rectifications, or proceedings initiated after the commencement of CIRP but relating to a period prior thereto, shall also stand extinguished, in view of the binding nature of the Resolution Plan under Section 31 of the Code. The Income-tax Department shall not be entitled to initiate or continue any proceedings, recovery actions, attachment, or coercive measures in respect of such extinguished dues, and the Corporate Debtor shall stand fully discharged from all such liabilities.

10.9 Upon approval of this Resolution Plan by the Hon'ble Adjudicating Authority under **Section 31 of the Insolvency and Bankruptcy Code, 2016**, **any liability arising under Section 115JB (Minimum Alternate Tax – MAT)**, including tax, interest, penalty, surcharge, or cess, as well as **any disallowance or liability under Section 43B of the Income-tax Act, 1961**, relating to any period **prior**

to the Effective Date, and to the extent not expressly provided for in this Resolution Plan, **shall stand permanently extinguished**. It is further clarified that: Any **MAT liability or MAT credit adjustments**, and Any **statutory disallowances under Section 43B** on account of non-payment of taxes, duties, cess, PF, ESIC, or other statutory dues, which were **not paid or crystallised prior to the commencement of CIRP**, or which arise out of **assessments, reassessments, rectifications, or proceedings initiated after the commencement of CIRP but relating to a period prior thereto**, shall also stand **waived and extinguished**, in view of the binding nature of the Resolution Plan under Section 31 of the Code. The Income-tax Department shall not be entitled to **raise, enforce, or recover** any such MAT or Section 43B related demands against the Corporate Debtor or the Resolution Applicant, and the Corporate Debtor shall stand **fully discharged** from all such liabilities.

10.10 **Waiver of Tax Liability on Haircut to Financial Creditors (No Income to Corporate Debtor):** It is submitted that pursuant to the implementation of the Resolution Plan, the Financial Creditors of the Corporate Debtor have agreed to accept a reduced amount against their admitted claims, resulting in a waiver, sacrifice and/or haircut of a portion of their outstanding dues.

It is hereby clarified that such waiver or haircut by the Financial Creditors **does not give rise to any income, benefit, perquisite or gain** in the hands of the Corporate Debtor and shall **not be construed as taxable income**, whether under Section 28(iv), Section 41(1), Section 56(2)(x), Section 115JB or any other provision of the Income-tax Act, 1961, or under any other direct or indirect tax law for the time being in force.

The waiver of debt is an integral and inseparable part of the resolution process undertaken under the Insolvency and Bankruptcy Code, 2016, and is affected pursuant to a statutory resolution mechanism approved by the Committee of Creditors and the Hon'ble National Company Law Tribunal under Section 31 of the Code. Accordingly, such waiver constitutes **capital restructuring pursuant**

to law and not a remission or cessation of trading liability in the ordinary course of business.

In view of the above, upon approval of this Resolution Plan by the Hon'ble NCLT, **no tax demand, assessment, reassessment, revision, penalty or interest** shall be initiated or continued against the Corporate Debtor in respect of the haircut or waiver of debt granted by the Financial Creditors under this Resolution Plan, and any existing or contingent claims in this regard shall stand **extinguished and irrevocably waived**.

This relief is sought in furtherance of the objectives of the Insolvency and Bankruptcy Code, 2016, including revival of the Corporate Debtor as a going concern and maximisation of value for stakeholders, and in light of the overriding effect of Section 238 of the Code.

10.11 Under the applicable provisions of law, various actions which are proposed to be undertaken pursuant to this Resolution Plan, prior approval/consent/no objection of the respective authorities/persons have been contemplated. On and from the Effective Date, such approval, consent, and no objection shall be deemed to be have given by the respective authorities / persons for any of the actions proposed to be undertaken pursuant to the Resolution Plan.

10.12 With effect from the **NCLT Approval Date**, and pursuant to the order of the Hon'ble National Company Law Tribunal sanctioning this Resolution Plan under Section 31 of the Insolvency and Bankruptcy Code, 2016, the implementation of this Resolution Plan by the Resolution Applicant, including any change in management, ownership or control of the Corporate Debtor arising therefrom, **shall not be deemed to constitute a breach, default, termination event or trigger any adverse consequence** under any agreement, contract, arrangement, understanding, licence, permit or instrument to which the Corporate Debtor is a party, solely on account of such implementation or change in control. All such agreements, contracts and arrangements shall continue to remain **valid, binding and enforceable** in accordance with their respective

terms, subject to the provisions of this Resolution Plan and applicable law.

10.13 The approval of this Plan by the Adjudicating Authority shall be deemed to have waived all the procedural requirements in terms of the Companies Act, 2013 and relevant rules made thereunder, for the successful implementation of this Resolution Plan, insofar as the law provides for the same.

10.14 With effect from the **Effective Date**, and pursuant to the approval of this Resolution Plan by the Hon'ble Adjudicating Authority under Section 31 of the Insolvency and Bankruptcy Code, 2016, **all liabilities, demands, claims, costs, charges, penalties, interest and expenses**, if any, in relation to the payment of premium or other amounts payable to any **local, State or Central authority** towards change of land use, conversion of land or allied permissions, **arising prior to the Effective Date**, shall stand **extinguished, waived and discharged**, to the extent permissible under applicable law, and no such authority shall have any further claim against the Corporate Debtor in respect thereof.

10.15 All liabilities, costs, expenses, fees, duties, stamp duty, charges, transfer charges, etc., that may be payable to any counter parties/ Government and Statutory Authorities on account of change in control/management of the Corporate Debtor or transfer of land, leases on account of Acquisition of the Corporate Debtor pursuant to the Resolution Plan, under any contract, agreement, deed including lease deed with private party, shall stand abated, waived off and permanently extinguished on and from the Effective Date.

10.16 Pursuant to the approval of this Resolution Plan by the Hon'ble Adjudicating Authority under Section 31 of the Insolvency and Bankruptcy Code, 2016, and subject to compliance with applicable environmental laws, rules and regulations, the Corporate Debtor shall be **permitted to continue its operations**, and any existing Environmental Clearances, Consents, licenses, approvals or permissions, including those granted under environmental and allied laws, **shall be deemed to have been extended or continued**, to the extent permissible under applicable law, **without requiring fresh approvals solely on account of the insolvency resolution process or change in management or**

control pursuant to this Resolution Plan.

10.17 General Circular No. 1BC/0I/20I7 dated October 25, 2017 released by the Ministry of Corporate Affairs (MCA), has clarified that "the approval of the shareholders/members of the Corporate Debtor for a particular action required in the Resolution Plan for its implementation, which would have been required under the Companies Act, 2013 or any other law if the Resolution Plan of the Corporate Debtor was not being considered under the Code, is deemed to have been given on its approval by the Adjudicating Authority " Accordingly, the requirement of procuring approval of the shareholders of the Corporate Debtor shall be dispensed with for any of the actions proposed to be undertaken pursuant to the CIRP.

10.18 The Resolution Applicant shall be exempted from the charge of income tax under Section 56 on transfer of share capital of the Corporate Debtor in favor of the Resolution Applicant / Nominees as the Fair Market Value (FMV) as per Rule 11UA in respect of Section 56, of such shares is considered to be NIL.

10.19 The Corporate Debtor shall be provided with carry forward and set off of accumulated losses for 8 (eight) assessment years starting from the year in which Resolution Plan is approved and such carry forward and set off losses shall be deemed to be in compliance with Section 72AA of the Income Tax Act. Further, the Corporate Debtor shall also be entitled to the carry forward and set-off of unabsorbed depreciation under Section 32(2) of the Income-tax Act, 1961, without any restriction on the number of years, notwithstanding any change in shareholding or management pursuant to the implementation of this Resolution Plan.

10.20 All Government Authorities will grant a grace period of one year post the effective date, to facilitate the Resolution Applicants in evaluating the status of the Resolution Plan for the Corporate Debtor and to manage the licenses and approvals necessary for the project. This timeline will also provide the opportunity to rectify any non-compliance under the Applicable Laws existing prior to the closing date. The Company is expected to use this period effectively

for the application and regularization of the said licenses and approvals, ensuring the seamless execution of the project and adherence to all regulatory norms.

10.21 The CBDT / relevant tax authorities and its enforcing officers and / or agencies (including but not limited to the Assessing Officer, Commissioner of Income Tax, Commissioner of Income Tax (Appeals), and Income Tax Appellate Tribunal) to:

a. not void or take any action with respect to the transactions contemplated under this plan under Section 281 of the Act;

b. exempt the resolution applicant from any liability to taxes including but not limited to those under Section 56 and 170;

c. exempt the corporate debtor and its new management from payment of any tax or interest or penalty under the Act, which may be assessed against the Corporate Debtor on account of any non-compliance with the provisions of IT Act for the period before the Plan Effective date;

d. not initiate any prosecution proceedings against the new management of the Corporate Debtor for the non-compliance with the provisions of the Income tax Act, for the period before the Plan Effective date;

e. condone the delay in filing any compliances / returns prior to the Plan Effective date;

f. Not levy any tax (including but not limited to Section 56, 41(1) and 28 of the IT Act and minimum alternate tax(115JB)) arising as a result of giving effect to, or otherwise in relation to, the plan, in the hands of the Corporate Debtor or the Resolution Applicant; and

g. Provide relief to the Company from all direct tax litigation pending at different levels and provide waiver from all tax dues including interest, penalty and prosecution on such litigation;

10.22 The Central Board of Indirect taxes and Customs to not void or take any other actions with respect to the transactions contemplated under this plan under Section 81 of the Central Goods and Services Act, 2017 and not impose any successor liability on the Resolution Applicant or the Corporate Debtor.

10.23 The CBDT, ROC, CBIC or any other relevant Governmental Authority to allow the Company to enjoy and avail in future all tax benefits, deductions, exemptions including carry forward of losses under Income Tax Act, 1961 as per the relevant provisions of the applicable law which the Company was entitled to , whether income tax return or other statutory forms, return etc. was filed in time or not as per the relevant provisions of the Applicable Law. The Resolution Applicant shall be given an opportunity to file all pending returns and these shall be treated as filed in time and no penalty or fine shall be charged for the same.

10.24 Any charges created on any assets of the Company prior to the plan effective date, for claims not filed, shall be extinguished and the MCA shall update the same in records.

10.25 Resolution Applicant shall be allowed to substitute the authorised signatory in all bank accounts maintained by the CD and banks will be directed not to charge any interest, penalty or other charges during the CIRP period.

10.26 NOCs, consents etc. from existing professionals, consultants of the Corporate Debtors including but not limited to Statutory Auditors, etc. will not be required and /or insisted upon by such agencies, departments of the government by the Resolution Applicant, where the Resolution Applicant desires to appoint any new professionals, consultants etc.

10.27 Any authority, power of attorney, rights given by the Corporate Debtor to any person / representative up to the effective date shall become infructuous and void.

10.28 The Resolution Applicant assumes that, in compliance of its duties under Regulation 35A of the CIRP regulation, the RP had determined whether CD has

been subjected to any transactions covered under Sections 43, 45, 50 or 66 of IBC or not, and may have applied / apply to the Adjudicating Authority for seeking appropriate relief. Accordingly, though the Resolution Applicant reserves its right to institute any investigation pertaining to any transaction(s) carried out by the ex-management of the Corporate Debtor or to file appropriate applications before the Court / Tribunal of competent jurisdiction, the RA and its officers, directors, new management of the CD shall never be liable / responsible for any such transactions carried out by the ex-management of the Corporate Debtor.

10.29 Directions to be given that liberty be reserved to the Corporate Debtor, Resolution Applicant and to all other persons interested in the Resolution Plan to apply to the NCLT for any direction(s) that may be necessary for the purpose of carrying out the Resolution Plan.

10.30 Equity shares shall be issued and allotted to the Operational Creditors against the haircut / extinguishment of their admitted claims, in accordance with the Resolution Plan. Such equity shares shall be subsequently cancelled and extinguished, in the manner provided under this Resolution Plan and in compliance with the applicable provisions of the Insolvency and Bankruptcy Code, 2016 and the Companies Act, 2013, without any further payment or consideration. The rationale for this provision is to mitigate potential Income Tax liability under Section 41(1) of the Income Tax Act arising from the write-off of operational creditors after payment to them. To address this, operational creditors are notionally allotted shares, which are immediately extinguished by transferring the corresponding amount to Reserves & Surplus. Consequently, there is no requirement for a detailed scheme for the issue of shares, and the matter has been appropriately addressed in the Resolution Plan.

10.31 Any profits generated from the operations of the Corporate Debtor on or after the Effective Date shall accrue solely to the benefit of the Resolution Applicant/Reconstituted Corporate Debtor, and no creditor shall have any claim or entitlement thereto.

10.32 Any losses, haircuts, or economic shortfall arising pursuant to the implementation of this Resolution Plan shall be borne by the Financial Creditors forming part of the Committee of Creditors, in proportion to their respective admitted claims and entitlements under the Resolution Plan, and no recourse shall lie against the Corporate Debtor or the Resolution Applicant in this regard.

10.33 Any amount required to be paid pursuant to any order, direction, or decree of the Hon'ble Adjudicating Authority or any other court, tribunal, or statutory authority, to the extent not otherwise provided for under this Resolution Plan and to the extent permissible under Applicable Law, shall not be adjusted against or deducted from the amounts proposed to be paid to the Financial Creditors under this Resolution Plan. Any such additional liability shall be borne and paid separately by the Successful Resolution Applicant, without prejudice to the payments proposed to the Financial Creditors under this Resolution Plan.

10.34 **Non-Blacklisting and Eligibility Relief:** It is prayed that, in the event the Corporate Debtor has been blacklisted, debarred, suspended, restricted, disqualified, or otherwise rendered ineligible by any Government authority, Public Sector Undertaking, statutory authority, regulatory body, contracting agency, or any other person on account of any act, omission, default, breach, non-performance, misconduct, contractual termination, cancellation of work orders, or any other event attributable to the erstwhile management, promoters, directors, or persons in control of the Corporate Debtor prior to the Effective date, such blacklisting, debarment, suspension, restriction, disqualification, ineligibility, or adverse consequence shall stand withdrawn, waived, extinguished, or shall not be enforced against the Corporate Debtor upon approval of the Resolution Plan. The Corporate Debtor, upon implementation of the Resolution Plan and takeover by the Successful Resolution Applicant, shall be treated as a revived and independent entity distinct from its erstwhile management and shall be eligible to participate in, bid for, qualify for, obtain, and execute future tenders, contracts, projects, licences, concessions, registrations, empanelments, and other business opportunities without any prejudice arising from past acts, omissions, defaults, contractual terminations,

performance deficiencies, or misconduct attributable to the pre-CIRP management.

10.35 Relaxation in Profitability / Net Worth Eligibility : It is prayed that for a period of 2 to 3 years from the Effective Date of the Resolution Plan, the Corporate Debtor shall be granted suitable relaxation from any profitability, positive net worth, minimum turnover, or similar financial eligibility criteria prescribed by Government authorities, PSUs, lenders, regulators, or tendering agencies, considering that the Corporate Debtor has undergone Corporate Insolvency Resolution Process (CIRP) and may reflect accumulated losses in its balance sheet due to financial stress preceding CIRP. Such relaxation is essential to enable revival, business continuity, and successful implementation of the Resolution Plan.

10.36 It is clarified that any income tax liability arising on account of notional or book income consequent to implementation of this Resolution Plan, including but not limited to write-back, waiver, extinguishment, remission, restructuring, or settlement of unpaid liabilities of creditors in the books of the Corporate Debtor, shall form part of the reliefs and concessions sought for effective implementation of the Resolution Plan, subject to applicable law and orders of the Hon'ble Adjudicating Authority and/or competent statutory authorities.

10.37 It is further clarified that this Resolution Plan is not contingent upon, nor conditional to, grant of any specific relief, concession, exemption, waiver, or approval sought herein, and no such relief or concession shall constitute a pre-condition to implementation of the Resolution Plan.

10.38 Order under Section 31 of the Code

On passing of an order by the Adjudicating Authority approving the Resolution Plan under section 31(1) of Code, the Resolution Plan shall be binding on the Corporate Debtor together with its employees, members, Creditors (including any assignees and successors), guarantors and all other stakeholders affected by the Resolution Plan and that accordingly, the approval of such employees,

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members, Creditors, guarantors and other stakeholders (including any Governmental Authorities) shall not be separately required to be undertaken, whether before or after the Transfer Date, for implementation of various actions proposed to be taken pursuant to the Resolution Plan; and in accordance with section 238 of Code, any action undertaken pursuant to the approved Resolution Plan by the Resolution Applicant, shall not require compliances under any other laws including but not limited to the provisions of the Companies Act, 2013, FEMA Act, 1999 etc. since, the Code is a complete code in itself and the Adjudicating Authority acting under Code functions as a single clearance for all actions proposed to be undertaken pursuant to a resolution plan approved by the Adjudicating Authority. Accordingly, the process stipulated under Code for implementation of a resolution plan is a final and binding process on all stakeholders (including any Governmental Authorities). For the implementation of the Resolution Plan, and except as set out in the Resolution Plan, upon the Resolution Applicant ensuring compliance with the provisions of the Code and the CIRP Regulations, no further compliances, actions or consents will be required under other laws or regulations for undertaking the individual actions contemplated under the Resolution Plan.

10.39 The Resolution Applicant has sought the waiver of income tax liability on notional income arising on implementation of the Resolution Plan due to writing back of the unpaid dues to the creditors in the books of the Corporate Debtor. In the event NCLT does not grant any of the reliefs sought by the Resolution Applicant then in such case, the RA will still go ahead with the Resolution plan and will not withdraw from the process. "Notwithstanding anything contained in this plan, it is clarified that our plan is not dependent upon any of the assumptions, approval or non-approval of any relief or concessions prayed by us in this resolution plan and the same is not a precondition. Further, In the event NCLT does not grant any of the reliefs sought by the Resolution Applicant then in such case, the RA will still go ahead with the Resolution plan and will not withdraw from the process.

Notwithstanding anything contained in this plan, it is clarified that our plan is

not dependent upon any of the assumptions, approval or non-approval of any relief or concessions prayed by us in this resolution plan and the same is not a precondition. Further, In the event NCLT does not grant any of the reliefs sought by the Resolution Applicant then in such case, the RA will still go ahead with the Resolution plan and will not withdraw from the process.

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SECTION-11: MISCELLANEOUS PROVISIONS

11.1. Confidentiality

By the receipt and deliberation of this Resolution Plan, the Resolution Professional and the Financial Creditors of the Company agree and undertake that they shall not reveal, and shall ensure that their directors, officers, managers, employees (including those on secondment), affiliates, legal, financial and professional advisors and bankers (collectively, "Representatives") to whom Confidential Information is made available do not reveal, to any third party, any Confidential Information, without the prior written consent of the Resolution Applicant, provided however that the provisions of this Clause shall not be applicable to any disclosure pursuant to Applicable Law subject to any practicable arrangements to protect confidentiality. It is clarified that the Resolution Professional, Resolution Applicant and the Corporate Debtor shall be entitled to share certified copy of the Adjudicating Authority approving this Plan with third parties, including Government Authorities. The Resolution Applicant shall be entitled to injunctive relief, specific performance and other remedies to enforce this Clause.

11.2. Entire Plan

The Resolution Plan along with its Chapters, Annexures, Appendices, Addendums, modifications, alterations etc. constitute the entire Resolution Plan within the meaning of Section 30 of the Code, r/w Regulation 38 of the CIRP Regulations, and supersedes and cancels any prior written or oral plan, proposal, minutes, understandings in this regard, if any.

Validity of Resolution Plan

11.3. The Resolution Plan shall be valid from the date of submission of the Resolution Plan till the date of the order of the Adjudicating Authority approving the Resolution Plan , subject to right to appeal, . Upon approval of the Resolution Plan by the CoC and the Adjudicating Authority, the Resolution Plan shall be valid till the consummation of the steps/ transactions proposed for implementation as

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enumerated under this Resolution Plan.

11.4. Any requirement of obtaining necessary approvals from the Central or State Government or any other authority, required under any law for the time being in force, shall be dealt with in terms of the Resolution Plan.

11.5. **Binding, Further Assurance**

11.5.1. Upon approval of the Resolution Plan by the Adjudicating Authority, the Resolution Plan shall be binding on the Corporate Debtor and its respective Workmen, Employees, Members, Creditors and Guarantors, the Central Government, any State Government or any local authority to whom a debt in respect of payment of dues arising under any law for the time being in force, such as authorities to whom statutory dues are owed, Implementation and Monitoring Committee and other stakeholders of the Corporate Debtor and / or otherwise concerned or connected with the Corporate Debtor (hereinafter, 'Persons'). Any breach of the terms of the Resolution Plan or default in the performance of the obligations hereunder by any Person or Persons, shall cause irreparable damage to the Resolution Applicant and its proposal to revive the Corporate Debtor's business. Accordingly, in case of such breach or default or inaccuracy, the Resolution Applicant shall have the right to such remedies as may be available under applicable law (in addition to specific performance) and / or filing an application with the Adjudicating Authority in accordance with the Code.

11.5.2. Further, all such Persons and the Resolution Applicant, shall use their best efforts to do or cause to be done, such further acts, deeds, matters and things and execute such further documents as may be required by the Resolution Applicant to give full effect to the terms of the Resolution Plan in accordance with its terms and conditions, including but not limited to (i) making all necessary filings of statutory and regulatory forms as may be required to be done by any such person under any law for the time being in force, as soon as possible, with the relevant registries or other authorities to record the release of their respective pledge/ hypothecation and or

mortgage(s), to be released under the terms of the Resolution Plan

In terms of Resolution Plan as the evidence of discharge of Claim and release of pledge/ hypothecation and/ or mortgage(s), the Financial Creditors of the Corporate Debtor shall release the original deeds and other documents and provide no dues and satisfaction of charge certificates duly executed modification of charge forms for filing with the Registrar of Companies and any other document required for evidencing the full and final discharge of their Claims and release of their security interests and respective pledge/ hypothecation and/ or mortgage(s), as may be required by the Corporate Debtor and/ or the Resolution Applicant simultaneous with release of funds in their favour.

11.5.3. Notwithstanding anything to the contrary contained in the Resolution Plan, the obligations of the Resolution Applicant to make payments shall be effective and operative on and from the Plan Approval Date, only in accordance with the Resolution Plan.

11.6. Conflict

In the event of any repugnancy or inconsistency between the Resolution Plan and any other documents (except RFRP), the provisions contained in the Resolution Plan will prevail.

11.7. Entire Understanding

The Resolution Plan along with its Schedules, Annexures, Appendices and all supporting documents submitted by the Resolution Applicant to the Resolution Professional constitutes the entire Resolution Plan of the Resolution Applicant within the meaning of section 30 of I&B Code and CIRP Regulations and supersedes and cancels any prior oral or written plans, proposals, arrangements, discussions, correspondence or understandings with respect to the insolvency resolution of the Corporate Debtor.

11.8. Revision, Modification and Amendment

Notwithstanding anything contained in the Resolution Plan, the construct of the Resolution Plan, measures under regulation 27 of CIRP Regulations and the amounts and payments contemplated and set out therein have been arrived at on the basis of the information provided in the Information Memorandum, Subsequent communications/information provided thereto and independent due diligence conducted by him and his team. The Resolution Plan has been prepared on the assumptions that none of the assets, receivables (except those disclosed in the Information Memorandum) or securities of the Corporate Debtor shall be transferred, alienated, sold, disposed of or otherwise Encumbered in any manner other than in the ordinary course of business after the approval of the Resolution Plan by the members of the CoC of the Corporate Debtor under section 30(4) of the Code.

11.9. Performance

It is clarified for the avoidance of doubt that the Resolution Plan shall be binding on and shall inure to the benefit of the successors of the Resolution Applicant.

11.10. Assets of the Corporate Debtor

11.10.1. The Resolution Applicant will get possession of the Land and Building of the Corporate Debtor situated at Tehsil Akbarpur, UP, Satna MP and Alwar, Rajasthan, free and clear of all encumbrances from all Financial Creditors after the payment of the entire resolution amount as contemplated in the plan to the financial creditors. Further all other assets (including compensation receivable from acquisition of CD's Land & Building from any Government authority, all other properties, moveable or immovable, whether freehold, leasehold or license basis, current assets like Inventory, Debtors, right or claims against the past management etc.) of the Corporate Debtor disclosed/undisclosed shall be vested with Resolution Applicant immediately from the payment of entire amount as contemplated in the plan, free and clear of all Encumbrances of all Financial Creditors.

11.10.2. It is clarified that during implementation, RA shall have a right to approach NCLT and other respective authorities take such steps as may

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be necessary to remove or address any difficulty that may arise in implementation of the Resolution Plan approved by the Adjudicating Authority.

11.10.3. The Resolution Plan is submitted on an "AS IS WHERE IS", "AS IS WHAT IS", "WHATEVER THERE IS", and "WITHOUT ANY RECOURSE" basis. Accordingly, no representation or warranty is made regarding title, quality, quantity, condition, usability, compliance status, or fitness of any asset of the Corporate Debtor.

11.10.4. *Treatment and Utilisation of Cash, Liquid Assets and Realisable Balances of the Corporate Debtor:* The Resolution Applicant shall pass-through to the Financial Creditors of all Cash and Liquid Assets of the Corporate Debtor available as on the Effective Date, including but not limited to cash and bank balances, fixed deposits, forfeiture amounts (if any), and other readily realizable liquid funds, after first adjusting and payment of any unpaid CIRP Costs in full. The amounts distributed to the Financial Creditors under this clause shall be in addition to, and over and above, the Resolution Amount / consideration proposed under the Resolution Plan. Such amounts shall be distributed amongst the Financial Creditors in the same proportion and manner as contemplated for distribution to Financial Creditors under the approved Resolution Plan, or in such other manner as may be decided by the Committee of Creditors (CoC), consistent with the terms of the Resolution Plan and applicable law. For the avoidance of doubt, the Resolution Applicant shall only facilitate such pass-through distribution, and the beneficial entitlement in respect of the aforesaid Cash and Liquid Assets shall accrue to the Financial Creditors in accordance with this clause.

11.10.5. Nothing contained in the Resolution Plan shall be construed as seeking extinguishment, waiver, or modification of any statutory liability, governmental claim, or legal encumbrance except to the extent expressly permitted under the Insolvency and Bankruptcy Code, 2016 and specifically approved by the Hon'ble Adjudicating Authority.

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11.11. Cancellation of Attachments on the assets of the Corporate Debtor and release of property in favour of the Corporate Debtor

All the attachments on the assets/properties/bank accounts/projects of the Corporate Debtor created by any Government Authority or any other relevant authority including but not limited to department(s) of Income Tax, Service Tax, GST, Sales Tax, VAT, Excise, PF, ESI, Enforcement Directorate, DTCP or any other authority or department shall stand cancelled/ceased/ settled upon approval of this Resolution Plan by Hon'ble Adjudicating Authority. All the pending litigations, suits, proceedings, quasi-judicial proceedings, arbitrations, civil or criminal proceedings and demands created against the Corporate Debtor shall stand abated, cancelled and disposed of by the respective authority or Court on providing the copy of order of Hon'ble Adjudicating Authority approving the Resolution Plan. In case any order passed by any authority or court, it shall stand cancelled and unenforceable in accordance with Section 32A of the Code.

11.12. Liabilities for past actions or omissions

The Resolution Applicant will acquire control over the Corporate Debtor pursuant to the order of Hon'ble Adjudicating Authority, the RA will get control the CD upon the payment of entire plan value as contemplated in the plan.

Subject to Section 32A of the Code the Resolution Applicant and the Corporate Debtor shall have immunity from any actions and penalties (of any nature) under any law , including Income Tax, Service Tax, GST, VAT, Sales, Tax, Excise and Customs, PF , ESI, DTCPE etc. for any non-compliances of laws in relation to the Corporate Debtor or by the Corporate Debtor, as well as with the terms of any agreement or arrangement entered into by the Corporate Debtor, which was existing as on the Insolvency Commencement Date.

11.13. Overriding effect of the Code

The measures and actions set out in the Resolution Plan and the approved resolution plan shall prevail and take effect notwithstanding anything inconsistent contained in any other law for the time being in force or any other instrument having effect by virtue of any such law.

11.14. No action by Persons

After the NCLT Approval Date, no creditor of the Corporate Debtor, assenting or dissenting, it's employee(s), members, guarantors and other stakeholders including the Central/State Government or any local authority to whom the debt in respect of payment of due arising under any law for time being in force, such authorities to whom statutory dues are owed or any other creditor shall be entitled to institute or continue any suits or proceedings including execution of any judgment, decree or order in any court of law, tribunal, arbitration panel or authority against the Corporate Debtor or take any action to foreclose, recover or enforce any security interest created by the Corporate Debtor in respect of its property (including any action under SARFAESI) in respect of any claim or liability for the period prior to CIRP commencement date.

11.15. Non-Performing Asset

On and from the NCLT approval Date, and upon the entire payment as contemplated in the plan the accounts of the Corporate Debtor shall no longer stand classified as non-performing asset as per the NPA Regulations.

It is further clarified that the default credit history and/or any other default related track record or classification of the Corporate Debtor shall be waived and not carried onwards to the Resolution Applicant under any step during the implementation or thereafter of the proposed resolution plan.

11.16. Assessed Income Tax Losses

The company has /may have assessed Income Tax losses. As the company will be taken over under CIRP as Going Concern the Resolution Applicant will be entitled to adjust, he brought forward losses as per provisions of Income Tax Act.

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SECTION- 12: PRAYER & CONCLUSION

12.1. Prayer:

In view of the facts and circumstances stated hereinabove and in accordance with the provisions of the Insolvency and Bankruptcy Code, 2016, the Resolution Applicant most respectfully prays that this Hon'ble Adjudicating Authority (National Company Law Tribunal) may be pleased to:

i. Approve the Resolution Plan submitted by the Resolution Applicant under Section 31 of the Insolvency and Bankruptcy Code, 2016, as it meets all the requirements of Section 30(2) of the Code and is in compliance with the Regulations framed thereunder;
ii. Declare that the Resolution Plan is binding on the Corporate Debtor, its employees, members, creditors, guarantors, and other stakeholders in terms of Section 31 of the Code;
iii. Grant all necessary reliefs, concessions, waivers, and approvals as sought in the Resolution Plan for its effective implementation;

12.2. Conclusion

The Resolution Plan proposed herein has been made considering all the relevant provisions of the Insolvency & Bankruptcy Code, 2016 read with rules and regulations framed there under, along with amendments. The resolution plan has been prepared based on the information provided in the public domain and IM of the corporate debtor. The resolution applicant reserves its right to make amendments in the resolution plan after receipt of other requisite information from the resolution professional with the consent of COC only and the same shall be subject to their approval.

I understand that the Resolution Professional shall examine our Resolution Plan as received by him to confirm its compliance with the IBC, and in specific, Section 30(2) of the IBC read with Regulation 38 of the CIRP Regulations. I understand

that the CoC have further right to renegotiate the contents of this Resolution Plan and the decision of the CoC in the selection of the Successful Resolution Applicant shall be final and binding on us.

Yours faithfully,

Mrs. Jaishree Gupta
(Authorised Signatory)
New Delhi
Dated- 13.07.2026